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Loudoun County Board of Supervisors, Business (reconvened Jul 21), Wednesday, July 22, 2026

Date Wednesday, July 22, 2026
Place Board Room, First Floor, Government Center, 1 Harrison Street SE, Leesburg, Virginia
Length 5h 39m (video)

- Official meeting video (county, Granicus): <https://loudoun.granicus.com/player/clip/8216>
- Meeting page (Granicus): <https://loudoun.granicus.com/player/clip/8216>

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Speech-to-text: whisper.cpp, model large-v3-turbo. Produced 2026-10-09. Each paragraph starts with its time [HH:MM:SS] in the meeting video.

[00:08:18] Yes. Good evening, supervisors. Good evening, staff. And good evening, Loudoun. I'd like to call the order of the July 21st, 2026 Loudoun County Board Supervisors Business Meeting. This room has a hearing loop. If you need hearing assistance, please switch your hearing aid to the telecom mode. If you need a headset, we have those available as well. Please see the clerk to request one. Would everybody please join me in the Pledge of Allegiance?

[00:08:52] I pledge allegiance to the flag of the United States of America and to the republic for which it stands, one nation, under God, indivisible, for liberty and justice for all.

[00:09:10] Before I read the remote participation, I'm going to take a moment of personal privilege and say that for everyone who was stuck yesterday in the airport in New Orleans, Louisiana, for over 13 hours with me and all of us, I have to say that I had been stuck in airports before.

[00:09:33] And you know what? There's nothing you can do about it. There's nothing you can do about the weather. There's nothing you can do about it. But I thought that the Loudoun delegation, I thought that, I thought we had the most fun you could possibly have stuck in the airport. There was no, there was no blaming. There was no, it was just getting to know each other.

[00:09:53] and we really, really wanted to come home, and we were supposed to take off at 12:47. We took off at the other, like, 12:47, like, it was crazy, but you know what, there's nothing you can do about it. It was bad weather, and sometimes some things are just first-world problems, and you just deal with it, and so I really want to thank everyone who I could not think of a better group of people to be stuck in an airport with, so thank you, everybody.

[00:10:22] Pursuant to Virginia Code Section 2.2-3708.3 and the Board of Supervisors' Rules of Order, Supervisor Brixman requested to participate in this meeting by electronic communication. A fiscal quorum of the Board of Supervisors is present in the boardroom, and the Board has made arrangements for the voice of Supervisor Brixman to be heard by all persons in the boardroom.

[00:10:46] Supervisor Brixman made this request within the required time frame, And the county attorney determined that the request meets the qualifications to participate remotely. The board will record in this minute that Ms. Brixman participated for a remote location in Brookline, Maine.

[00:11:03] Due to personal reasons, I can see her. Ms. Brixman, can you hear us? I can. Thank you. Wonderful. Mr. Letourneau will not be here this evening. Mr. Kirshner will, although I do not know what time he is going to be here.

[00:11:20] Because we are starting this meeting at 6 o'clock instead of 4, we have a different order of the meeting. We're going to go right ahead and do the one proclamation we have, which is a proclamation for Americans with Disabilities Act. And then we're going to go right into public comments, and then we'll go into the regularly scheduled meeting so that we can make sure that people who come into the room for the proclamation or to speak are still getting out of here on a timely matter.

[00:11:50] met in a timely manner. Ms. Glass is going to join me down front for the proclamation that we have. And with everyone who is here for the proclamation, please join me as well. Madam Chair. Yes. Would you like to do the consent agenda first? The proclamation. Oh, the proclamation on the consent agenda.

[00:12:05] Okay. I'm going to read the consent agenda because the proclamation is on the consent agenda. It's kind of long. It is long. Hold on one second. Okay. I'm going to read the consent agenda. Item R6, Proclamation to Recognize July 2026 as Americans with Disabilities Act Awarding Awareness Day.

[00:12:29] R7, Resolution of Commemoration for Service of the United Service Organization's Lounge at Washington-Dulles International Airport. That's for approval only. Mr. Turner and I and Ms. Umstead and some other people, Ms. I don't know, some people are going to go over to the airport to do this proclamation on site.

[00:12:52] Item 1A, award authority during the August board recess. Item 1B, award authority increase educational software solutions and services. Item 1C, pre-development loan pilot program an application for Robinson Townhomes. Item 1D, Attainable Housing Loan Program Application for Lakeview Apartments. Item 1E, Resolution Request and Extension of 2018 Bond Referendum.

[00:13:21] Item 1F, Northern Virginia Regional Commission Strategic Funding Initiative. Item 1G, Retiree Health Premium Review of the Countywide Group Health Plan, Medical Prescription Drugs, Dental and visual benefits. Item 2A, planning commission's calendar for year, for calendar year 2025 annual report. Item 2B, proposed amendment of the 1066 and repeal of the 1067 of the codified ordinances of Loudoun County. Item 2C, proposed rewrite of the codified ordinance of Loudoun County chapter

[00:13:57] 838 Swimming Pool and Water Recreation Facilities, Item 3A Appointments and Confirmations, Item 4 the AIR Report for July 21st, 2026, Item 5 Resolution of Attent to Amend that's a DOAM 2026 that's 0001 Loudoun County Facilities Standards Manual Standards for Cultural Resources, Item 6, Resolution of Attent to Amend, that's also a DOAM, 2026-0002, Loudoun County Facilities Standards Manual, Standards for Fire Apparatus, Access Road Shoulders.

[00:14:34] Item 9, PCOR 2026-0060, Dogwood Farm Station Proffer Amendment, Public Hearing Waiver. item 10 legy 2025-0069 lcps transition um academy cpmt so it's a cpmt 2025-0014 commission permit

[00:15:00] item 12 legy 2026-0012 practice linterker substations 2026-0013 and cpmt um 2026-0014 but that will be colleagues' motion number two.

[00:15:19] Item 13, board member initiative for Loudoun County's veteran memorial redesign and reconstruction. It's a revised draft motion provided at the dais by Supervisor Sains. I'm going to have Supervisor Sains read that motion right now just to have it into the record.

[00:15:38] Mrs. Sains, do you mind reading that motion since it's going on consent? Not a problem. I move that the Board of Supervisors direct staff to work collaboratively with the American Legion Post 150 to put together a proposal to redesign and construct the Veterans Memorial located on the intersection of Sterling Boulevard and Holly Avenue, while also working with the Veterans of Foreign Affairs Post 1177, American Legion Post 34, and this is the addition, and the Loudoun Foreign War Memorial Trust Fund Committee to put together a proposal to redesign and reconstruct memorials located on the grounds of Loudoun County Circuit Courthouse in Leesburg. I further move that the Board of Supervisors direct staff to research if there

[00:16:18] are other veteran memorials located on county grounds and present findings back to the Board of Supervisors for further evaluation. Thank you, sir. So that motion, I just had him for the record read that motion into the record since it's on the Cassin agenda. That would be the entire Cassin agenda. I will make a motion to approve this Cassin agenda. Is there a second?

[00:16:36] Motions made and seconded by Supervisor Turner. Discussion on the consent agenda, Ms. Birskman, what are you showing me? Thank you. You said Ms. Birskman, right? You know what I did, but I actually missed some of the resolutions, and I don't know how I did that, because they're not in my paper, that's—I'm sorry.

[00:16:56] There's a couple of the resolutions, they're all for approval only. A proclamation to recognize August 2nd through 8th, 2026 is National Health Center Week. Resolution to recognize Military Appreciation Month. Resolution of commentation for Freedom High School Boys Tennis Team.

[00:17:13] Resolution of commentation for the Freedom High School Boys Outdoor Track and Field Team. Resolution to recognize Rockbridge High School Boys Tennis 2026 for a state championship. And those are the only resolutions. Yes, and those will be included.

[00:17:28] Ms. Brickman, I'm going to come to you tonight for most of the items first, just because that's my habit when people are virtual. joining us virtually, just because it's a little easier for me to remember to do it like that. So, yes, I did call on you first, ma'am. Thank you. I just wanted to thank my colleagues for supporting on the consent agenda the Dogwood Farm Station public hearing and fee waiver. That's going to help us get those 72 units of attainable senior housing on the ground faster. And also, I'm excited to see that the Lakeview apartments there on Route 7 and the Robinson townhomes,

[00:18:07] that's in Little River, are going to be benefiting from our new pre-development loan pilot program and the attainable housing loan program. So, just wanted to highlight those two things on the consent agenda. Thank you. Thank you. Anybody else? Ms. Ticroni.

[00:18:23] Thank you, Chair Randall. I just wanted to mention the Windy Hill Foundation pilot program, pre-development loan pilot program, will help advance six new rental townhomes to families earning between 60 and 80 percent of the AMI.

[00:18:43] And Windy Hill has done a fabulous job bringing affordable housing in the town of Middleburg. And I just want to give a shout out to them for coming up with this idea of doing a pilot to help bridge that gap and bring affordable housing, more affordable housing, to the town.

[00:18:59] Thank you. Thank you, ma'am. Ms. Umstead. Thank you, Madam Chair. just wanted to thank Supervisor Sains for taking the lead on the Veterans Memorial issue and for reaching out to both Supervisor Turner and myself. I very much appreciate it. Thank you. Thank you. Anybody else? All right, I'll be able to say aye.

[00:19:20] Okay, I'm sorry. I didn't see it. Mr. Sains. Not a problem. Thank you, Madam Chair. Yes, I just want to acknowledge and thank my colleagues for supporting item number 13, the BMI for Loudoun County Veterans Memorial Redesign and Reconstruction.

[00:19:39] I'm bringing this item forward to initiate the much-needed repair for the Veterans Memorial that's along Sterling Boulevard and Holly Avenue that's been there for 50 years and is starting to show some age. And I feel it's, in talking with the veterans team that manages that property, they're in agreement.

[00:19:59] And, you know, when I travel, you know, to different parts of our great country, I see different memorials. And even if you look in Virginia, there's some really nice displays. And when you compare ours to some of those others and doing some Google searches, seeing on companies that have done this good work, you know, we have some nice memorials.

[00:20:21] but I think we could do just a little bit better in my observation. So that's why we brought this initiative forward to continue to honor our veterans that have served and lived here in Loudoun County and served our country and served our commonwealth with distinction and honor.

[00:20:38] So we're very appreciative of them, but I think we need to make sure we are honoring them very well as well and we can do some touch-up and some redesign with our memorials because they've been there for some time now in Sterling and also on the courthouse grounds.

[00:20:54] So that's why we brought the decision to Ford. I appreciate our two veterans, Vice Chair Turner and Supervisor Umstead, supporting me with this initiative. So I look forward to the work with the staff and the members of the War Committee and the veterans post.

[00:21:11] I look forward to their work and seeing what they come back with. So thank you. Mr. Sainz, there's a farm out in the Catoctin district, and they designed a September 11th memorial. It is just beautiful.

[00:21:27] It's etched granite. I'm going to go out there for the commemoration for September 11th. Come with me. I love you. I think the person designed it was a Loudoun County person. It is just lovely. Come out there with me.

[00:21:44] All right. All in favor, please say aye. Aye. Any opposed? That motion will pass 7-0-2 with Mr. Letourneau and Mr. Kirchner off the dais. Okay, now, Ms. Klaas, will you please join me down front?

[00:22:45] Whereas the Americans of Disabilities Act, ADA, signed into law on July 26, 1990, is landmark civil rights legislation that protects the rights of individuals with disabilities and promotes equal access and opportunity in all areas of public life.

[00:23:13] And whereas the ADA has enhanced access and opportunities for people with disabilities by reducing barriers and promoting inclusion, however, continued efforts are needed to address ongoing accessibility challenges and to advance equal access for all members of the community.

[00:23:31] And whereas according to the 2024 American Community Survey, approximately 31,924 Loudoun County residents, or 7.2% of the population, identifies having a disability highlighting the importance of accessible programs, services, facilities, communication and community engagement and whereas July 26, 2026 marks the 36th anniversary of the ADA and provides an opportunity to recognize the progress achieved while reaffirming the ongoing responsibility to advance accessibility, inclusion and equal opportunity for people

[00:24:10] with disabilities, and whereas Loudoun County is committed to ADA compliance and to ensuing equitable access to programs, services, and information for individuals with disabilities, and is conducting an ADA self-evaluation and transition plan project to identify and address accessibility barriers through a coordinated and data-informed approach.

[00:24:35] The transition plan will establish a phased framework to prioritize and address barriers based on impact, feasibility, and regulatory requirements, and whereas Loudoun County encourages residents, businesses, organizations, and community partners to reaffirm the principles of accessibility, inclusion, and equal opportunity embodied in the ADA and to continue working toward a more accessible and inclusive community for all.

[00:25:04] Now, therefore, be it resolved that the Loudoun County Board of Supervisors does hereby proclaim July 2026, July 26, 2026, as Americans with Disabilities Act Awareness Day in Loudoun County and urges all residents to celebrate the many and varied contributions of people with disabilities and support the value and talent that people with disabilities add to our community.

[00:25:32] I do want to say one thing, and that is, I believe it was last week, I went to visit the ARC with Ms. Kimball and it was an amazing opportunity to see what the ARC is doing to our residents. There are people with physical disabilities and they are working to support

[00:26:09] them with with yes yes with the ability at the ability center and also they had an area where you have the school and I met students look like from first grade on up to 12th grade and it was wonderful to see the work that you all are doing so just thank you for that chair I will say first of all thank you for all your

[00:26:45] work you this it is very it's it's important work and and it is seeing a community that other people may not always see and not just seeing them but really appreciating them getting to understand their personalities and their needs sometimes getting to understand people who don't know how to express themselves but you know what they need anyway so getting getting to know their nonverbals, all those things. It's such important work. And we have a lot of organizations in Loudoun who are doing this work. You know, Tree of Life Ministry is doing it. Spark is doing it.

[00:27:15] Of course, ARC is doing it. So all over the county, we have people who are caring about this work. I also want to, as I always will do, put a plug in for a person whose disability may be one that cannot be seen, because there are people who are struggling with mental health disabilities PTSD and those other things and so to make sure that we see I'm gonna try to understand the whole person and every at every frame is so so important you all doing you all are doing this work every single day and we just we just cannot appreciate you more we need you they need you and the be required on this sometimes you're doing work that the county or it or no

[00:27:53] government agency can do all of that you would just you they're just not made up do it so that's why we I always say that our nonprofits are first multiplier because you all do the things that we don't always be we're not always able to do. So I have a 14 year old son who has never known life without disabilities and we are very grateful to live in Loudoun County and have the services and the organizations that we do to support him so we continue to advocate for people

[00:28:32] with disabilities, their families, their caregivers, and we appreciate all the support. So when I was, when we just came back from National Association of Counties, and there was one program there, and it was, I'm telling you, I'm going to ask, I'm going to make an ask of some of you later on, it's called the Neuro Diversion Toolkit, and it is a toolkit of how counties can make county facilities and county functions and county systems easier to navigate for people who might have disabilities.

[00:29:06] And so I want to sit with the lady who put this toolkit together. She has two adult children who have disabilities, and I want to get some community members, and so we can just sit with her, ask her questions, understand how the toolkit really works so we can see about what we implement here in Loudoun County.

[00:29:25] It's going to be exciting. Okay.

[00:29:27] If we have any other public comments down there, will you bring them up to me right now, please?

[00:31:07] Okay, we're going to go on and do public comments, as always. Sorry, we're going to go on and do public comments, as always. When your name is called, thank you very much. You have, you come to the podium closest to you. You have two minutes.

[00:31:23] The timer on the podium will tell you how much time you have. When you finish speaking, you can yield the floor to the next speaker if you do not mind. I will say that when giving public comments, public comments should be faced toward the board because you're talking to the board and not faced to the audience.

[00:31:42] If you are giving, if there's anybody who's giving comments, if anybody's giving comments on their phone, I'm going to ask that you keep your own timer because if you can't see your clock. I'm not going to stop you when you get to like one minute and 30 seconds because it messes your flow up but I will stop you when you get to two minutes and so keep your time on your phone if you don't mind and I'm going to call you about three people in advance so that you know that you are next. Our first speaker is Lana Romire followed by Madeline Skinner followed by

[00:32:17] a remote Peter Weeks. Good evening ma'am. Good evening. Hello my name is Lana Romire and I have a resident of peony springs for 14 years and i've been advocating for our village for 10 years as a part of the water and wastewater project tonight i'm here to speak on item number eight regarding the small

area plans for historic villages this process should preserve neighborhoods unique historic qualities while helping bring it into the 21st century which includes possible zoning

[00:32:54] amendments each village as a community should be able to speak for itself with its individual needs without outside interference peony and springs also needs priority as one of the first round of villages to go through the small area plan process due to the ongoing pressing issues i wanted to read an excerpt from the loud historic village alliance small area plan charter signed by each village representative of just a couple of the guiding principles for this effort quote community each rural village is the heart of a cherished community that has endured and evolved through crises wars and far-reaching economic and cultural change

[00:33:30] The resilience that characterizes our communities should not only be preserved, but should also be considered as an example for the future. Authenticity. While our villages share a common heritage and many common characteristics and needs, they are each unique. The small area planning process will highlight the special qualities of each village and will build upon each village's vision for a future that builds upon its legacy and strengths.

[00:33:54] quote. I urge you to tonight to prioritize the historic village small area plans, include the village of Peony Springs as one of the first villages to go through the process due to our unique challenges. Thank you for our time. Thank you. Thank you, ma'am. Thank you. Madeline Skinner followed by Peter Weeks on the phone. Good evening, Ms. Skinner. Good evening, Chair Randall and supervisors. I'm Madeline Skinner and I am proud to represent our beautiful historic yet endangered rural historic villages. Tonight, in addition to Philomont, there are representatives from Lincoln, Lockett's, Bluemont, Paonian Springs, and I stand in for Willisville for the moment.

[00:34:33] Aldi Heritage Association has sent you an email also asking for support. LHBA is here tonight to rally support from all of you. We ask that you make small area plans one of the very top priorities for DPZ and keep it a top priority until all the rural historic villages plans are completed as needed. From the county's rural land management plan in the 1980s, villages have been waiting for 40 years and even more so since the 2019 comprehensive plan. We hope that DBZ will be back in October with a small area plan, high level plan, and hopefully the TBD can be replaced for

[00:35:08] an actual date for us to begin. We have seen the rural landscape drastically change over the last 30 years. Old Ashburn is hanging in there with a few remaining historic structures that are surrounded by subdivisions and data centers. Too many of our other villages, so many, are just memories at Bosch Library.

[00:35:26] Many of our Western villages deal with the extreme number of agritourism and event venues that bring traffic, noise, and sometimes the true definition of being a thoughtless neighbor. Thank goodness there are still some good neighbors. Our rural villages need strong protections to help preserve them into the future.

[00:35:43] This can only be accomplished by village-specific small area plans to be complemented by the much-needed updates from the Western Lawton Rural Uses and Standards Initiative. Special exceptions have allowed for too many very negative impacts, ones that cannot be reversed, open space and character lost forever.

[00:36:00] I know some of you may not understand the way of life some of us has chosen. It's hard work, but the legacy and character of historic structures, agricultural endeavors, and rural traditions is absolutely worth fighting for. I hope you will support us now and into the future. Thank you.

[00:36:15] - Thank you, Ms. Skinner. Peter Weeks is on the phone, and he'll be followed by Patricia Logu, I think, Logu. Mr. Weeks, can you hear us? Oh, yes. Thank you, Chair Randall, supervisors. My name is Peter Weeks.

[00:36:32] I'm vice chair of the Loudon Historic Village Alliance that Madeline alluded to, and I also represent the historic rural village of Bluemont. The Alliance endorses the small area development plan process proposed by staff, and since In 2019, it's been a while, we certainly urge its immediate implementation for all of Loudoun's historic villages, both east and west.

[00:37:00] I've described the village of Bluemont as having our back both literally and figuratively against the mountains, surrounded as we are by vineyards, breweries, and wedding centers. To maintain our village feel, it's important for us to have the ability to define our borders, create local zoning ordinances, and most importantly, maintain our green buffers.

[00:37:26] Our rural historic villages are an economic asset for Loudoun County, and with your support, let's protect and preserve them. Thank you for listening. Thank you, Mr. Weeks. Appreciate it. Good evening, ma'am. You are going to be followed by Phil Daly. Good evening.

[00:37:45] Good evening. I'm Patricia Logue. I'm here from Lockett's, and I'm here to ask you, like my predecessors, to continue making our small area plans a priority for planning and zoning. 250 years ago, our village was actually at the shores of the Potomac, where the old Carolina Road crossed at Nolan's Ferry.

[00:38:05] At some point, a fork was created in that road that went north and west to Point of Rocks, and where that crossroads happened is where our village continues to be centered today. That created a natural place for individuals to invest in commerce.

[00:38:21] That process continues today in every historic village. It's how Loudon functions. Our local businesses are owned by individuals and families, not big corporations.

[00:38:38] They're people with deep roots in our community and deep roots in their industries. People like Jonathan and Hilda Staples, Jeff and Vera Erdman, Rick and Stephanie Brosman, Doug and Colleen Fabioli, Roger and Christine Knoll, Suzanne and Wyatt Eblen.

[00:38:56] They don't have time to be here tonight because most of them are back in the village tending to those millions of details that it takes to run a small business. The risks that they take are very real and very personal. And all of them right now are facing headwinds, particularly in Lockett's.

[00:39:16] They're waiting for Route 15 to finally be fixed. They're waiting to see how the bypass will affect them. They're worried about raising their prices. They all would like to make investments, but money is hard to come by. They lack stable zoning in the village.

[00:39:32] Their future is tied to the future of the community. We ask you to support planning and zoning's continued work. Let them do something besides data centers. They'd really enjoy it. Thank you. Thank you, ma'am. phil daly followed by david ward good evening sir good evening madam chair and supervisors my name is phil daly i've been here before uh i am the senior advisor to the lincoln community league you know i've been worried about lincoln for a long time i moved here in 1980 shortly

[00:40:11] after the historic district of goose creek was formed we had a chance to make that a solid district. It is not. There's holes in the district. There's holes in the Lincoln community itself as not being in the historic district. But that may be as it may. We need that small area plan.

[00:40:34] We have Percival on one side. We have Hamilton on the other side. We have the last dairy farm in Loudoun County protecting us right now. That's not protected. We should think about that in the future as being a heritage site. Anyhow, we need the small area plans. That's what I'm here to talk to you about. I've had meetings with zoning issues on RC zoning, rural commercial zoning. That was back in 2017. That has never been fixed. Promised it would be fixed with the 2019 plan. It hasn't

[00:41:08] been fixed yet. Across the street from me, I have a whole eight acres, which are just gone up for sale it was not in the historic district and with rc zoning who knows what's going to happen over there i don't know and we're concerned i've had two meetings regarding the small area plan with our community we were enthusiastic both these were back in 2024 when i had them all pumped up about it it's now 2026 i can only talk to the board and to the annual meetings and really we need that

[00:41:44] small area plan. Every one of the communities need that small area plan. We need it now, as soon as possible, and we look forward to that support. We're worried about data centers too, but we're really worried about our living conditions and where we are and where we're going. Thank you very much.

[00:42:03] Thank you, sir. David Ward, you're going to be followed by Warren Brazile. Good evening, sir. Good evening, Chair Randall and Board. My name is David Ward. I've lived in the Catoctin District for 42 years. I retired two years ago after serving Loudoun County government for 22 years and I'm here to speak about the retiree health premium increase 1g although it's on consent I understand. I urge you to not to proceed with the recommended increases. I'm one of 568 retirees who rely upon the post 65

[00:42:41] retirement group health insurance through Loudoun County. It's an undervalued benefit in my assessment. I'm currently in the 20 to 24 year service with two persons on Medicare and my rates increased from \$230 per month in 2024 to \$297 in 2026. It's a 29 percent increase. The rate went up again from 297 to 310 in 2026, a modest 4.5 percent, but now the recommendation is to

[00:43:13] increase it from \$310 to \$375 per month, a 21 percent increase. So in just three years, from 2024 to 2027, my wife and I will see a 63 percent increase in our healthcare premium. It's a little late, but I just wanted to let you know and be nice if that weren't so high. Thank you. Thank you, sir. Thank you. Mr. Brazil,

[00:43:41] before you come. Mr. Judge Horne? Yes. Hi. Just watching. Okay, anything I can do for you? No, I'm just an observer. I'm here to say thank you for your interest in the monuments. Okay. Like my family for the last 50 plus years on the court. Thank you, Judge Horne.

[00:44:03] Thank you. I want to thank the supervisors for it. We appreciate you very much. Thank you, Judge Horne. Mr. Brazil? Thank you. My name is Warren Brazile. and I'm the secretary for the Loudoun Foreign War Memorial Trust Fund Committee.

[00:44:20] Several of our members of our committee are present tonight, including Dethorn. I'm speaking in support of Board Member Initiative 13 on your agenda this evening. The committee is appreciative of the board's initiative to draw attention to our county's war memorials and supports the efforts of the community to recognize Loudoun's veterans who have fought and died to support our nation's conflicts,

especially the effort to restore and upgrade the war memorial in sterling the committee has historically provided input support to the county in the maintenance and upgrades to the war

[00:44:56] memorials on the courthouse grounds in fact we currently have a list of items regarding maintenance and improvements in front of the county staff that the committee has recommended for the continued preservation of these memorials the committee would also like to see the inclusion of the revolutionary war memorial in this initiative as we consider it to be a war memorial recognizing the soldiers who fought in our nation's first war against foreign adversaries the loud and foreign war memorial trust fund committee is honored and willing to be included in this initiative

[00:45:33] as a supporting resource for actions related to the war memorials on the courthouse grounds we We have been involved in this effort for over 20 years and have accumulated significant cultural and historical knowledge related to these memorials.

[00:45:51] Thank you for your consideration and time. - Mr. Sainz, the end of that motion actually says, basically, look at all other possibilities for more memorials around the county too. Doesn't it, didn't it say that at the end, how you finished that motion?

[00:46:09] Did you? - Yeah. - Yeah, okay. I think that that would be included, the Revolutionary War would be included, based on that end of that motion. But we can get—but I hear what you're saying. I'm sorry. James Russell will be followed by Shane Crowe.

[00:46:27] James Russell, going once, going twice. Shane Crowe, you're going to be followed by Roger Smith. Good evening, Mr. Crowe. Good evening. As always, my name is Shane Crowe from the Algonquin District, Loudoun's friendly nuisance, always advocating for ranked-choice voting here for our local elections.

[00:46:44] It's been some time, a lot to say, so a little time on my end, but I do wanted to reflect on the June primaries that D.C. had using ranked choice voting. Now, I'm just going to consider it a coincidence that I'm talking about the Democratic primary and also that Supervisors Kirshner and Letourneau are absent today.

[00:47:02] But perhaps it would be worthwhile to pass on to them, just to reveal some of the history behind how D.C. got to utilize ranked-based voting for their primaries, is that voters there were able to utilize it in spite of the initial wishes of the Democratic Party in D.C.

[00:47:20] But I digress on that. I want to reflect on some of the benefits that D.C. voters were able to enjoy. So most D.C. voters, well over a majority, utilized more than one ranking in their decisions. And there were some interesting patterns that came out.

[00:47:37] For voters that voted in races that did not have a clear frontrunner, they were more likely to use more rankings. But across all the elections, including those that did have frontrunners, voters that had their first choice for a perceived underdog were also more likely to use more rankings.

[00:47:55] And in those more competitive races that did not have a clear frontrunner, there were cross-endorsements, which I think is one of the biggest benefits, where candidates cross-endorsed each other, highlighting the common ground that they had in their policy platforms.

[00:48:12] And I'm more than happy to share the report, just to disclose I'm pulling all of this from FAIRVO, which is a national organization that advocates for ranked choice voting. But overall, I think that

these behavioral patterns that were demonstrated by D.C. voters is something that I would see easily replicated if we were to use ranked choice voting for our local elections here.

[00:48:33] So, again, I thank the board very much for their time, and I'm more than happy to continue the conversation. Thank you. Thank you, Mr. Crowe. Thank you very much. Roger Smith, sir, you will be followed by Tony Vigilio. Good evening, Mr. Smith. Good evening. I'm Roger Smith.

[00:48:49] I'm here to address the scheduling for village small area plans. 18 months ago, Peonian Springs was designated by the board as a priority for small area planning, one of the three top priority villages. But as of today, Table 2 in the staff report displays the ominous label TBD next to the small area plans.

[00:49:12] No one has been assigned to manage them, and there is no estimated completion date. How is that consistent with the staff's statement that three project plans will be available by fall of this year? Forgive me for being skeptical. Peonian Springs faces a unique mix of issues.

[00:49:32] Consider that a very high percentage of parcels in the village are vacant and ripe for development. Combine that with the possibility of installing community utilities, and there are huge implications for the whole village. That by itself would suggest that Peonian Springs needs a thoughtful village-wide plan.

[00:49:52] But there is also a high degree of urgency in these issues. Some folks in Peonian Springs face imminent health threats due to failing wells and septic fields. Community utilities would supposedly solve this problem, but the county's plan for doing so would not be completed until 2032.

[00:50:13] Folks can't wait that long if they have utility problems today. So please require staff to schedule the first phase of small area planning to begin this fall for the residents of Peonian Springs. Thank you. Thank you.

[00:50:29] Thank you, Mr. Smith. Tony Virgilio, you will be followed by Debbie Virgilio. And if I'm saying your name wrong, please correct me. You've got it right this time. Okay, thank you. Thank you. Madam Chair and members of the Board, I urge you to deny the Happy Paws K-9 special exception applications, Proving them would reward illegal activity, undermine our zoning laws, and damage this residential community.

[00:50:51] From 2021 to 2024, Beatrice and Marcel ran a commercial dog kennel in their home without a county permit and applied for one only after being caught. Do not reward their deception. This is a single-family home, deeded, taxed, mortgaged, insured, listed, and sold as such.

[00:51:07] There is no accessory kennel building. Beatrice testified under oath that 90% of the house is used continuously to board dogs. Under section 303e of the zoning ordinance, a home occupation must clearly be incidental and subordinate to residential use. Using 90% of a home for commercial boarding is the opposite of incidental. This use violates the trip generation limit of 10 additional vehicles per day, impacts standards prohibiting detectable noise and odors off the lot, and exceeds employee limit. It is an illegal home occupation.

[00:51:34] This specs is not restricted to the Happy Paws application. It fundamentally changes 303e of the zoning ordinance to allow commercial dog kennels and homes across the entire county and allows all of their inherent violations of this ordinance. This county-wide zoning change did not follow required legal procedures.

[00:51:50] This is a strictly residential neighborhood of six subdivisions. Restrictive covenants and all six prohibit dog kennels and commercial animal services. Neighbors suffer constant noise, odors, traffic, lighting, dog fights, and contamination. These are real harms to the health and quality of life. Approving this will open the door to in-home kennels of 30 to 40 dogs in neighborhoods across the county.

[00:52:11] Any neighborhood that does not have a homeowner's association restricting it and approving this will actually force the issue to be decided at the HOA level by homeowners that have to go where the county would not go in prohibiting these kinds of activities. We have already filed Clean Water Act complaints with the EPA, DEQ, and County Health Department to stop contaminated runoff from the outdoor pen and require remediation.

[00:52:37] We ask you to uphold the County Zoning Ordinances as is, not change them, protect residential communities, and deny these applications. And we appreciate your time and effort, and I hope that you will support us in this effort. Thank you, sir. Debbie Vigilio, followed by our last speaker, William Marsh.

[00:52:55] My wife is in the hospital still at Georgetown University Hospital with a very serious infection. She asked me to deliver a copy of the petition to the board, which we have done, and I think you already have copies of those, so I would just like to pass that along. Thank you, and we're sorry, our thoughts are with your wife, ma'am.

[00:53:12] Thank you so much. Thank you so much. William Marsh will be our last speaker. Good evening, members of the board. I'm here on behalf of the Loudoun Environmental Commission. Earlier this afternoon, some of you listened during transportation and land use, the admission of our annual report that was on the consent agenda.

[00:53:33] And I thought I'd stick around for a few extra minutes and just summarize some of the key points that the commission is focused on for the rest of this calendar year. On the natural resources side, we're very seriously taking the recommendations of the Groundwater Action Plan. We stand ready to support staff as they develop that plan, make sure that there's some independent oversight that's woven in, either from the Department of Environmental Quality, the U.S. Geological Survey, or both.

[00:53:56] Second, we are absolutely going to be supporting staff on their invasives review and their program evaluation that you'll be hopefully seeing later this year. It's very important. That was hit home again at TLUC earlier this afternoon. Our Natural Resources Committee is actually going to have one last meeting before our recess next week to hear from the groups involved in that effort. So that's a big focus of ours as well. We want to encourage the greater use that's been in our last two annual reports of internal county coordination through something called an environmental leadership team. That's a key recommendation of ours because we liaise with one of the agencies

[00:54:33] that's hugely important in the topics, but not every topic that comes up is in their remit, and we feel that the ELT is a good way to foster more coordination more comprehensively on environmental priorities. Finally, we are very much in support and want to advance the Energy Innovation Forum that hopefully will be planned in the near future. We see valuable lessons learned from our May 30th annual forum that we learned. We are sensing some real opportunities for distributed energy innovations via state policy change, specifically the virtual

[00:55:08] power plant pilot that Dominion Energy has to adopt in January 2027 that many Loudon residents can potentially benefit from, as well as businesses. The other is still something I'm trying to get

my head wrapped around, but this idea of grid utilization that got passed by the governor this year, that goes into effect under state corporation commission conditions we're not familiar with yet. Again, January of 2027, we feel that an energy... I'm out of time.

[00:55:35] We're so insupportable, yeah, completely lost track of time. You were saying some important things, though. Thank you so much. If you want to submit the rest of your comments, you can via email or to the clerk. Thank you so much. Thank you, everybody, who came out to speak tonight.

[00:55:52] Supervisors, we're going to go on with our agenda tonight. I did not have a voice for a cause because I knew there was going to be a late meeting, and we're going to have a two-hour late start. And so I'll go in and do my organizational updates, and then we'll go from there. So on Thursday, July 6, NVTa held our monthly meeting.

[00:56:16] The only thing of really importance of that meeting was that the town of Leesburg did make the motion to reallocate the regional service transportation program funds from the town of Leesburg back to NVTa.

[00:56:32] They had been working on that, the town of Leesburg, for a very long time with NVTa, with Ms. Backman. Ms. Burke, Mayor Burke, came to the meeting. The issue, and Subhazam said you might know this, the issue was simply that the cost of the projects just ballooned.

[00:56:55] So it was nothing that anyone did, wrong or right. The cost of the project just ballooned. And so that they weren't able to do the project at this time. So in VTA, you would remand your money back if revenue was received that you couldn't use.

[00:57:12] And so Mayor Burke came in, she made that motion, I seconded that motion, and we really did appreciate that cooperation from the town. Monday the 13th, I met with the CEO cabinet regarding the already completed comprehensive arts plan that was completed by the county staff.

[00:57:34] And really, really, if you have not had time to go read that arts plan, please do. Ms. Glass joined me for that meeting. We talked about the three different types of possible arts venues that could be in Loudoun County.

[00:57:51] a community arts center, a performance arts center, and an amphitheater. I received more clarification on the difference between all of those and what they were. Ms. Glass and I at some point are going to convene a roundtable so that we will put on the FOIA calendars so that everyone can come that wants to because I don't know that maybe everyone does understand all these differences.

[00:58:19] Maybe it was just me that didn't understand. but I think it's really helpful for everyone to understand. Go on and read the Comprehensive Arts Plan, and then maybe we can start locking down a little bit more possible sites and locations for the Community Arts Center, which would be what we tackled first, what that looks like, where that's at.

[00:58:41] And so Ms. Glass and I will be working on some dates, and not just, like, the Loudon Symphony, but all the arts programs. So there's the symphony, and there's all the Loudon Corrals, the Sterling Playmakers, you know, all the people who are doing performance art, sculpture, drawings.

[00:59:04] If it's art, we want to sit down and have that discussion together. So we'll let you know how that is going. On the 15th was the Baco Region 8 meeting. it was held in alexandria it really most of the meeting was housing housing housing housing attainable housing and then some more housing although loudon is

1.8 percent um above the commonwealth's average for building attainable housing and fairfax is 0.8 percent the truth is that we are still um as a commonwealth as a region and as a county we're still struggling to get

[00:59:44] attainable housing on the ground, especially that deep affordability of that 50% or less AMI. And so we're still working on that. There were quite a few people that I have talked to since then. I will talk to Mr. Keeler. I had a discussion with the Amazon people who are doing housing, and I've had lots of discussions about housing over the past couple of weeks, and we will have more of those discussions, and I will kind of do an information dump

[01:00:23] to Mr. Keeler. And then we all went to the National Association of Counties conference. Since we landed at 2 in the morning, I have not been able to pull together the full report out from my end from the National Association of County Conference. I will do that full report and have that ready for the first meeting in September. I will acknowledge Mr. Supervisor Turner, who was reappointed to be the chair of the National Association of Counties EELU

[01:01:00] Committee, which is Environment Energy Land Use Committee. I will remain a vice chair of the Health Steering Committee, I remain a Vice Chair of the Midsize County Caucus, and I am on the Board of the National Association of Counties. And I know we have other people who might have received committee assignments and I'm sure when you all give your discussions

[01:01:32] your update on that, give an update on that. I also want to acknowledge Matt Rogers, who is my chief of staff, who has a committee assignment as well. He is on the Justice and Public Safety Committee, and he is a voting member. And so that's really great. And finally, I want to thank all the staff that went with us.

[01:02:06] I want to thank Mr. Hemstreet. I want to thank Mr. Quintine. I want to thank, what is Renee's last name? Bender, Bender, Bender, Bender, Bender, Bender, for all of you going with us. When you go with five of nine of your supervisors and it's just the three county staff, it's a lot to do.

[01:02:29] It's a lot to do. When I came to the board, none of us were going to NACO at all, and now that we have five of nine going this time was really, really huge. And we swung big, and we did really well. I also want to say thank you to Mr. Crony, although she's not a voting member of any of the committees.

[01:02:49] She did attend the rural committees, and this was the first time we've had someone go to NACO and just do the rural track. So all the agricultural and rural tracks, she did that completely. Usually I'm kind of trying to run back and forth, but because Mr. Crony was there, she did that completely.

[01:03:10] She's already bought some goodies back and handed them out today, and I will have all those things at the meeting in September. So thank you all for that, and I will now ask Mr. Hemstreet if he has any comments. Thank you, Madam Chair.

[01:03:26] I do have three comments. I did want to say we did, I think, lose Supervisor Brixman for a few seconds. She did text me and say she wanted to say something on the record, but I don't know when you want to take that up.

[01:03:43] I don't have a text from Supervisor Brixman, but I will go to her when you finish your comments. Okay, and then second, we missed down here additions and deletions. Did you remove? I did not do that yet. In fact, no, I didn't. You didn't miss it. I didn't do it. There is a deletion of the agenda.

[01:04:00] we are, the legislative item has been moved to the first meeting in September, the latest update. All right, thank you. I'm sorry? And number 16, oh, okay, well, okay, well, I'll get to her, but he does his comments. That's not an addition, and that's what Ms. Bricksman, I think, wants to, she didn't have to redo a vote, though. That's not what has to happen, but yeah.

[01:04:27] All right, thank you, Madam Chair. As I said, I have three comments for this evening. The first is that as those of you who attended the National Association of Counties annual conference know, Loudoun County has received four 2026 achievement awards from NACO in recognition of innovative and effective programs.

[01:04:43] The award-winning programs are the Loudoun County Public Library's Cold Case Files and the History of Video Games, Economic Developments, Hop On, Hop Off, Bus Tour, and the Loudoun Emergency Animal Safe Haven or Lease Program overseen by the Department of Animal Services.

[01:05:00] More information about these awards and other recognition the county's received is online at loudon.gov/awards Second the loudon workforce resource center is hosting two job fairs this summer The first is July 29th at the ashburn recreation community center. The second is August 20th at the Adams center in sterling These job fairs will feature more than 20 employers including the Loudoun County government with positions available in a variety of fields More information is online at loudon.gov/jobfares. And then finally, I'd like to formally introduce our new Youth Services Department Director, Jamika Jackson, to the board. Ms. Jackson, I think she's in the back of the room. Ms. Jackson, if you want to

[01:05:38] stand and be recognized, was selected for this position after nationwide recruitment. She brings with her more than two decades of progressive leadership in the areas of juvenile justice, diversion prevention, and human services programming. Please welcome Ms. Jackson. Thank you. Thank you very much. Ms. Jackson, where are you from?

[01:05:55] From North Carolina. Okay. All right. Well, welcome to Loudoun County. Best county in the country. You do live here, right? Okay. We did. Thank you, Ms. Jackson. Thank you. Welcome aboard, Ms. Jackson.

[01:06:12] Madam Chair, the first statement, well, second statement after Ms. Jackson accepted the job was how soon can I move to Loudoun? Exactly. All right. Thank you. Well, I did not get a text from Ms. Bricksman. I—it is my understanding that she would like to change her vote on the—on the barrister substation, which I was the only one that voted against that last time.

[01:06:36] It was an 8-1 vote. So, is that correct, Ms. Brixman, that you would like to have your vote recorded to be a no instead of a yes? Yes. Can you hear me? We can hear you just fine. Okay, great. Yes, I was going to ask for a point of personal privilege to correct the record on my I vote on the barrister substation, also known as LEGIE 2025-0010 from the July 7, 2026 business meeting.

[01:07:03] I would like the record to reflect that I meant to have a no vote on that without objection from my colleagues. So wait a minute, that's not a correction of the record. The record correctly reflected how you voted. You're actually changing what you want, how you want to vote, correct?

[01:07:19] Yes, ma'am. You're changing it. Yeah, so the record was reflected correctly. You're now changing that. Yes, I would like the record to reflect that I make the vote no. Okay, she'd like to vote no. Are there any objections to her changing that, which would make that an 8-2 vote?

[01:07:36] Yeah, I'm sorry, a 7-2 vote instead of an 8-1 vote. Yes. I have absolutely no objection to this whatsoever, but don't we need to reconsider the vote? Well, this is one of these moments where it could be up to the chair, there, because to reconsider the vote means you have to call the applicant back in and do all the things.

[01:07:59] It doesn't change the outcome. And so, I don't mind if this is an easier way, and it won't change the outcome one way or the other. If it was a vote to change the outcome, I would have the whole process happen.

[01:08:14] All right. Thank you. Yes, thank you, Madam Chair. I did talk to the county attorney about doing it this way. Thank you. All right. Anybody? Well, that's not a call with the county attorney. It's my call. But I have no issues with it. All right. Thank you. All right. Supervisors. Mr. Hempstreet's done. That's done. Let's go on and do some action items. How's that sound? Yay.

[01:08:39] Yay! I don't hear any -- Mr. Sainz said yay. Mr. Sainz said yay. Let's go and do I-2 and then we're going to -- I think there's probably a few people here from Happy Paws. Let's go in and get the Happy Paws done. Let's do I-2 and then do Happy Paws so we can get people

[01:09:03] the room now on i2 we do have quite a few um motions on the on the dais for i2 how y'all how are you doing good yeah how's it going i'm going pretty well i guess this is the last day we're going to the next time we're on the dais we're all going to use the different the different

[01:09:38] platform supervisors yes okay sounds good mr mr briggsman again i'm going to come to you first for questions okay i'll pretty much do that all night just i don't just so that that's just kind practice when people are not here, forget you on accident. All right. Our PowerPoint's all up and we're ready for our presentation. We are ready as well. Good evening. I'm Pat Giglio with the Department of Planning and Zoning. Also with me this evening is Dan Galindo, Director of Planning and Zoning, and Mike DiNicolo, Project Manager with Kimberly Horn. Kimberly Horn was contracted

[01:10:15] by the county earlier this year to develop an overview of the national and regional framework that governs the operation and planning of the bulk electrical transmission network. The findings from that reliability standards and electrical transmission planning white paper are being presented tonight.

[01:10:31] And at this point, I'll turn it over to Mike for his presentation. Hello, sir. Hello. Thanks, Pat. Good evening, Chair Randall, Vice Chair Turner, and members of the board. My name is Mike DiNicolo. I'm a project manager with Kimley-Horn & Associates, and I'm here to present on reliability standards and electric transmission planning. The purpose of the white paper in tonight's presentation is to provide information to board, the staff, and residents about how regional electric transmission projects are planned. And one of the main items we want to identify is the

[01:11:10] opportunities for the county to be engaged in that process early on before projects are selected and move to development here's an agenda for tonight we'll start with a lot of what is grid reliability reliability is usually what drives transmission planning so we'll address that initially we'll go over some of the entities that are involved in the planning process go through NERC and what are reliability standards specifically the ones that are related to

[01:11:44] transmission planning, and then we'll end with the regional process on transmission expansion planning process. So with that, Pat, we can go ahead. So what is grid reliability? The terms often thrown around. This definition here is a good definition. It's essentially the bulk power system's ability to

continuously provide safe, stable, and uninterrupted electricity to consumers even when components fail or system conditions change. So essentially it's keeping

[01:12:21] the lights on and if there's issues within the grid, if there's disturbances, if there's outages on a certain line or a piece of equipment, if there's storms, if there's a generator that goes out, the grid is still able to function and provide power to customers. So we have to start with NERC. NERC is the North American Electric Reliability Corporation. NERC didn't exist

[01:12:54] until after 1965. There was a blackout that caused portions of Canada and northeast U.S. to go out, and basically that prompted the need for a coordinated oversight of the grid.

[01:13:10] So NERC was formed, and now they're a nonprofit regulatory authority, which they're regulated by FERC, which is the Federal Energy Regulatory Commission, and they develop reliability standards that is responsible for the electric grid through Canada, the U. S. , and parts of Mexico.

[01:13:39] One of the things to note is that there's regions underneath of NERC, there's regional entities, there's six of them. The area shown in blue is CERC, and their responsibility is to have regional oversight of the areas shown, which includes Loudoun County and the Dominion Territory, which Loudoun County is within.

[01:14:04] With that, now we'll go through some of the organizations that are responsible for implementing reliability standards that are developed by NERC. There's PJM. PJM, you can see on the map there, that's the extent of PJM.

[01:14:22] It's a regional transmission organization, and it serves 13 states in the Mid-Atlantic region, including D.C. A good way to think about PJM is they don't actually own any infrastructure. They don't own any of the high-voltage transmission lines.

[01:14:41] They don't own any of the generation sources that produces power. They're essentially the air traffic controller of the grid. So as people turn on the lights and ask for load, they essentially coordinate with generators and make sure that power flows from point A to point B.

[01:15:02] and so they're they're always balancing the supply and demand on the grid and then dominion energy dominion is a investor-owned utility they they own generate and generating assets they own transmission assets and they own maintain and build those that infrastructure that pjm functionally operates and both of those entities they're both regulated by NERC. They're both have different roles and they have different responsibilities and there's different NERC standards that apply to a transmission owner versus a

[01:15:41] transmission operator or generator owner versus generator operator and and so that's that's a oversight of the grid here. So there's there's many NERC reliability standards we'll get it to in the next slide there's there's 14 functional families. The one that focuses on transmission planning is the TPL which is transmission planning and there's really four main fundamental principles for the planning process.

[01:16:14] There's a transmission facilities must operate within their established ratings so that power can flow without exceeding equipment limits during peak demands. The system must be designed with sufficient redundancy so if a piece of equipment goes out of service power continually could flow to different areas and make sure that service is being provided the grid also must remain stable so there's voltage frequency and power flow requirements that need to stay within

[01:16:51] acceptable operating limits so if there's an outage it still needs to work within those operating limits and then lastly and maybe most importantly they need to plan the grid for future scenarios so the regional process here they look 15 years ahead and they're looking at forecasted load growth they're also looking at retirement of generation facilities they're looking at new generation facilities that come on and they're looking at different flow patterns uh for power and and grid disturbances if there's outages on equipment and all that um or kind of this is

[01:17:30] basically what the the transmission planning reliability standards are um next slide these are overview of all the standards um again the main one is the transmission planning standards that we just discussed um one thing to note is that these standards can change over time um one of the one of the main you know processes is that they could change their standards however it needs to be approved by FERC and one of the things that are changing right now is that there's a large load working group that they've developed in 2024

[01:18:09] and it's really planned about you know data centers and others that are causing potential reliability issues and they're looking to come up with standards will be the first time for standards being developed for uh end users um so they're they're looking to make the potentially data centers a uh a regulated entity um and then pjm you know they obviously they have to operate through the air traffic control they have to operate the grid but their process um you know it looks over a 15 year planning horizon um and they identify transmission

[01:18:48] issues by applying that standard so they have a model that they run they look at different contingencies different uh you know issues in the future and they identify um instances where there's failures in the future and then they develop transmission projects around it and the main three transmission projects that come out are there's baseline projects network projects and supplemental projects um baseline projects are really mostly to serve reliability needs within the region and that the cost allocation is usually spread between the different areas that

[01:19:27] are benefit from that network projects are generally projects to serve a customer so if there's a interconnection for a generator or for a large load there'll be a potentially transmission project to serve those projects and that's typically paid for by the the customer that's asking for that connection and then there's supplemental projects which is any sort of transmission project within a incumbent utilities zone and you know and really we talked about this

[01:20:06] But essentially here we have the reliability standards, the TPL is the process where transmission planning, sorry, the criteria from PJM must use to evaluate future system performance.

[01:20:27] And then PJM conducts these studies and eventually when violations are identified, they come out with what become competitive proposal processes. And lastly, once there's a need that's identified, PJ and post that need on a public, you know, on their website, and then they open these competitive windows, there's different types of competitive windows depending on the project type.

[01:20:59] There's projects that need to be put into service in less than three years. There's projects that need to be put into service between three and five years. And there's long-term projects that need to be put into service in greater than five years. And transmission developers will put in proposals for transmission solutions in those windows.

[01:21:21] And they usually have anywhere from a month to four months to put in a transmission solution. And then PJM will take all these high-level plans and then they will select projects that meet the need, they'll look at cost, feasibility, the project timeline, and eventually it goes into a, this is really where Loudoun has an opportunity to engage this TEAC stakeholder review, which is the Transmission Expansion Advisory Committee.

[01:21:51] In that process, they'll discuss all the projects that have been proposed, and it's an opportunity to meet monthly, and they take stakeholder input. So you could provide comment, you could be part of the meetings, and then they shortlist those projects.

[01:22:08] So if they say they have 100 potential projects, they can narrow it down to 15 projects, and they could be in where they're sited could be completely different locations to serve that need. So I advise that the county be engaged in that stakeholder process and provide input.

[01:22:29] And then they make recommendations to PJ and board, who then selects the projects. And then those projects go into the process, which I think a lot of people are familiar with, is where they're developing a project, and then they start micro-routing the project, doing siting, doing field investigations, engineering, and then ultimately the application to the Virginia SEC for state approval.

[01:22:56] So I know the county's been involved in the SEC process and give testimony. If you get involved in the process during PJM, it's an earlier process, and it could have maybe easier to change potential solutions that end up getting selected.

[01:23:16] And then with that, there's the conclusion. I mean, the electrical grid serving Loudoun County is under unprecedented stress. There's, it's pretty well documented in the RTAP that the Dominion Service Area is anticipated for growth of 5.5% annual load growth over the next 10 years.

[01:23:38] The rest of PJM, that whole territory, have growth around 3.1%. So the Virginia area has more load growth planned. In the near in the next 10 years transmission investment is accelerating rapidly if you look at some of the reports in PJM in 2022 the baseline projects estimated at 2.4 billion dollars for the whole region the whole PJM region then in 2025 that cost went up to 11 point billion dollars for

[01:24:12] those projects so it increased quite a bit and of that 11.8 billion dollars I think 4.8 billion dollars were within the dominion territory um and then um with with large loads the regular regulatory landscape is constantly evolving as we talked about nurk is creating new standards around data centers pjms trying to figure out how to model data centers those loads which projects are real um and at the state level there's bills being passed on who who pays for the transmission and at the local level obviously there's a lot of discussion and changing the plans on how these

[01:24:49] projects are cited and so lastly just want to say that we think there's opportunities for the county to engage in their process and the two main processes is the or committees to be involved in is the transmission expansion advisory committee which meet monthly and they go through the transmission planning process and short list of projects and then there's the sub-regional RTEP committees there's three regions within PJM which go through projects and Dominion typically first submits their projects through that process the supplemental projects

[01:25:28] there so you could see those before they become official projects and I think that will give the county an opportunity to work closer with Dominion and hopefully get information earlier stages than

than at the SCC process, where it's more challenging to change routes as the routes become a little bit more fixed at that point.

[01:25:53] So thank you for this opportunity. Well, that was a lot. I'm sorry. Supervisors, I don't know. Well, how about this? Let's see if we can get it done in one round. If we need to, we need to.

[01:26:09] But let's see if we can get done in one round. Ms. Bricks, I'm going to go to you first, ma'am. Thank you. And thank you for the, I'm really glad we did this. The white paper was fascinating, or the report.

[01:26:26] I don't know if we called it a white paper, but you just mentioned an advisory committee that meets monthly, and I missed which one you were talking about. Yeah, there's two. They're both PJM committees.

[01:26:43] One is called, its acronym is TEAC, it's the Transmission Expansion. advisory committee and then there's another committee um it's the sub-regional rtep committee and it's the southern section okay okay those are the two i do have those in my motion and where did you say dominion initially submits um their needs or proposals is that rtep you were saying yeah the southern section of the the sub-regional rtep committee and those are the supplemental projects that that that they they need it within their dominion zone

[01:27:20] supplemental projects okay um do we distinguish supplemental from projects that would be for reliability yeah so supplemental projects are generally um if there's like old infrastructure they they have the right to to upgrade those lines and things like that so So those are more, they're not always, those are not necessarily reliability projects.

[01:27:50] Okay. So a red flag kind of went up for me when we were talking about the routing. No, actually it was a substation we were considering where a letter came through from PJM and Dominion or from Dominion that said they decided on this reliability loop, I believe Golden to Mars, three years ago.

[01:28:12] And so were we engaging at all sort of in the upper tier, like the orange part of that slide at that point? And or were they engaging with us at that point at all?

[01:28:30] Who are you asking that question to, Ms. Briggsman? I can kind of answer that question. So we know in 2022, the Golden to Mars and the reliability loop that we've seen was presented with the RTEP with PJM. And so in that point, Dominion identified it as a reliability transmission corridor, which was supported by PJM.

[01:28:51] But at that-- I'm asking if we knew about it, did they proactively engage with us? No, we were not actively involved at that point. And one thing to also remember when we look at these, they're conceptual when they look at PJM's planning. So they're really looking at it more from an engineering standpoint and how to address a problem.

[01:29:09] And then we see those routes get further defined by Dominion through that public outreach as these projects get, you know, passed through the PJM approval process and keep moving forward. So it's an iterative process that gets further refined. Okay.

[01:29:24] Thank you. I will have a motion later. Thank you. Okay. I think there's about three or four motions on the table on this item. So I will come to you soon. Mr. Crony. Thank you, Chair Randall, and thanks for the report.

[01:29:40] So have we ever been involved in the TEAC stakeholder review? I know there had been some involvement, particularly with the Mid-Atlantic Resiliency Line. The moral that was done, which was the one that we had, that the board actually took a position on, the one that passed through Western Loudoun, passed down through Waterford and made its way down through Leesburg.

[01:30:03] Again, that one, because of comments provided by citizens and by county representatives, one did get taken off um you know was was not further considered how about the 186 mile heritage to mosby hvdc again most of these projects we have not been been following at the teac or the pjw level do you think that would be helpful to follow it at that level it would be beneficial and i think that's part of the recommendations and why we were trying to explain some of the process here tonight yeah i have to say i'm i'm disappointed that that hvdc line is ending at mosby

[01:30:43] and i'm going to work hard to get it ending at the terminus point in data center alley versus mosby which is down along the bull run nowhere near data center alley so i am disappointed that we weren't at the table because i i don't know who made the decision to end it at mosby We have no undergrounding lines at all, and I would like to see something underground in Loudoun County, and an HVDC line would be nice to have that continue to the terminus point.

[01:31:14] Do you know if we, what are the chances that a corridor is designated as a NITC in Loudoun County? So the NITC process? NITC, yeah. Yeah, so I think right now, as far as I understand, there is none in this region.

[01:31:36] They don't identify it any longer as an area of interest. They did at one point years ago, and they've since taken it back. So that's a different process. That's, you know, it's in the report, but that's through the Department of Energy, and they no longer have any sort of interest in there.

[01:31:55] How many projects, you said Loudoun's under a lot of stress. How many projects are anticipated as load growth continues to increase and there are new reliability needs in the Dominion Zone, would you say? It's hard to say.

[01:32:10] I mean, it really depends on the need, and really those models really show the needs. I think if the load continues to increase, obviously you need to try to serve that load. So we'll continue to see investment in. So you think the 15-year plan will be changed because they do a 15-year plan, it sounds like.

[01:32:31] Yeah, so they're always looking at 15 years and they're trying to forecast load growth and generation retirements and trying to understand how. So things are constantly changing as people try to interconnect with the grid. There's constantly, they're looking at load growth and they're always trying to determine what load growth is real.

[01:32:50] So if they have a queue of a lot of projects that will generate or require a lot of power, how many of those will be developed? And so they run into, the further you look out, the harder it is to identify that growth. Okay, thank you.

[01:33:07] Ms. Umstead? Thank you, Madam Chair. if on one line we we were successful or one corridor and in getting it removed doesn't the need continue and doesn't that just push uh transmission lines into a different location along a different corridor if you say that again sorry do should i repeat that okay so let's say our involvement early which is there are a couple motions tonight to push for that let's say our

[01:33:45] early involvement allows us to identify that there's a proposal to put transmission lines down a corridor we don't like. Let's say we are successful in saying to PJM, Dominion, et cetera, we don't want it there.

[01:34:05] If there is a need, doesn't that just mean it goes somewhere else? So in that process, what happens is the transmission developers, when there is that need that's posted there's a lot of people that put in solutions so um there's transmission it doesn't need to be the the utility in that area so there could be songs are qualified transmission developer they could put in solutions so there may be hundreds of solutions or there could be a handful of solutions and if that need if there's multiple projects that could serve that need from different areas maybe there's one that's better you know for loudings perspective that

[01:34:44] it doesn't go through a certain area that you don't want it to go through then i would advocate for that project so they do show the different projects they show the generally high level map of where the trans it's not really microsite that that happens later where they microsite the route but it just generally shows you what area it goes through so you'd be able to say yeah this one makes more sense for us than this one and advocate for that one okay

[01:35:11] Is there any way to avoid a transmission line going through Loudoun County if a power source is on one side of the county and data centers are, let's say, south of the county, Spotsylvania, Stafford, Henrico, Orange County?

[01:35:32] I mean, is there any way to keep basically a cut-through transmission line from going through Loudoun County if the need is in another county, but the power source is on the other side of our county?

[01:35:51] I mean, we'd have to look at that specific case, but there would be potentially opportunities. So I'm saying a power plant in Pennsylvania because Virginia is a net importer of power. Pennsylvania is a net exporter.

[01:36:07] Power plants in Pennsylvania, Loudon says no to more data centers, but Stafford, Spotsylvania, other counties to our south say yes. How do we avoid transmission lines going through our county?

[01:36:24] The only way is really to advocate for it in these processes. Once the project gets selected and moves forward, then you go through the state process, the Virginia SEC, and then they're working to get right away established and develop that.

[01:36:42] So really, I think the main point is your opportunities in the early planning stages. And if you're not successful at that point and that route is selected, you'll have to deal with it in the next stage, which is during project development and through the Virginia SEC process.

[01:37:01] Okay, thanks. Supervisor, it sounds like we may need a second round. I think people still have lots of questions. And so, and I know, I probably should have did Happy Piles first. I apologize, because I know that there are at least three or four motions on this table.

[01:37:16] So this item is going to take a while. But when we get to the motions, I do want to make sure everybody has all their questions answered. Ms. Yeah? Point of clarification. Sure. I only see one. Where are the other motions? So I see, I think Ms. Brickspins, and then that's it.

[01:37:31] Mr. Crony, don't you have a motion on this? Oh, okay. Maybe this one. Okay. Okay. maybe it won't go to take too long now well i do have a question that might spark another yeah i'll wait for my time but thank you sure clarification uh miss um glass thank you madam chair and thank you for the

presentation um a few months ago um there was an article um regarding um dominion possibly being bought out by next era energy have um do we know if that is something

[01:38:08] that is going to happen or is that something down the line that we shouldn't be too concerned about right now does anybody know that i i we don't have an answer to that i know some of the was talking with the sec with that and i don't know if leo has additional information but i'm not sure the status of that sale at the moment no i i don't have any additional information at this time okay and okay thank you okay mr saynes thank you madam chair um and thank you for the

[01:38:45] presentation question to the pat or dan or whoever feels uh able to answer when is the comp plan changes coming back to the board okay so the phase two phase two of the electrical infrastructures which you're referring to yes yes so we're looking at a board check-in this fall potentially in november okay all right i'll just ask and you can direct me you know because i'm thinking about making a motion will not think about would like to make a motion at some point either now if you

[01:39:24] feel this is the appropriate time or wait till that time but I would like to do amendment making a motion to just simply state that we keep high voltage lines off of school property for LCPS so would staff feel that's appropriate now or wait till that time in this the phase two comes back to us it would be more appropriate during phase two if we were to make any policy amendments at that point. Okay. All right. And, okay. Thank you. Mr. Turner. Thank you, Madam Chair. Kind of a

[01:39:59] lightning round here. So FERC is a federal energy regulatory commission, and they're in charge of the whole ball of wax. NERC, North American Electric Reliability Nonprofit Corporation, is an arm of FERC vertically? They're regulated by FERC. So they are regulated by FERC. Yeah.

[01:40:19] PJM and Dominion are private organizations, corporations, that are also in turn regulated by NERC. They're both regulated by NERC. They report to NERC for its guidance. Or they have to follow the reliability standards that NERC creates.

[01:40:36] Where does the SEC fall into this, the State Corporation Commission fall into this whole formula? So after the transmission planning process, when infrastructure needs to get developed within the county over certain voltage levels, I think it's over 115 KV. Virginia SEC reviews the applications for the need for the project.

[01:40:58] With authority to deny a project? Yes. So PJM, so NERC, take it from the top, FERC, NERC, PJM, Dominion, and Partnership, they come up with a solution, a reliability solution. They then have to petition the SEC to get approval for that proposed solution.

[01:41:16] And the SEC says yes or no. And nowhere in this entire process does a local community get anything more than a seat at the table to wring their hands and say, gosh, I wish you wouldn't do this. Yes, I know that's a little subjectively nasty, but there you have it.

[01:41:34] We don't get a vote. You can't hear a head shake. You're going to answer a question. No, that's correct. And I think, you know, on the transmission side, the Virginia SEC could approve a project, and then it could be built. They obviously need to get landowner approval to site, to build the project.

[01:41:52] Okay, really quickly, does Dominion do distribution or do they hand that off to NOVAC? In this territory, like NOVAC operates within Loudoun County as a distribution, you know, as a retail provider and Dominion is the transmission.

[01:42:12] But Dominion does have areas where they serve as a distribution. Okay, here's what this slide illustrates for me that has bothered me for the last two and a half years. The grid is under unprecedented stress, and the response is transmission investment is accelerating rapidly to address growing demand.

[01:42:32] The underlying presumption of that second bullet is that the answer to the stress is more transmission lines. I have maintained for a long time that that's – and Dominion finally admitted the other day, they don't know if they have enough infrastructure being built to meet the growing demand.

[01:42:50] And I maintain the industry is going to on-site microgrids and on-site power. And yet, if you look at the IRP, that's not even mentioned. Can you address on-site power at all? I mean, in terms of data centers or large load, we're seeing that throughout the country.

[01:43:07] There's projects that we're involved in that they are doing on-site generation and bypassing the grid in a lot of cases. Or if they don't have power right away from the grid, they're using it as a temporary measure. And then turning into a microgrid when power is provided.

[01:43:25] So a lot of those locations, there's enough space to have all that on-site generation, that infrastructure. You know, I know Loudoun County has an instance, I believe there's one data center that did that. So I do think that is where things are continually to head, especially if there's, you know, additional costs going to be assigned to data centers in the state of Virginia.

[01:43:51] I would think they would look at that and see if it makes more sense for them to financially generate power on site. Okay, thank you. First of all, I would like to associate myself with Mr. Crony's comments about where we'd like to see a power line ended. How is it decided?

[01:44:09] What is the root of a power line? Who makes that decision and what goes into that decision? Yeah, so I think on the very early planning stage, there's a bunch of modelers, and they're looking at essentially a model, and they're running numbers, they're saying okay here's demand in this location and where could we get where could we get generation to serve that need and if there's generation in the queue the interconnection queue where developers are saying I want to put a power plant here here here they're trying to. But who decides the

[01:44:45] transmission lines? The transmission lines who decides where those will be located? It really starts in the planning phase and then once they say okay from point A to point B they have a general corridor we'll call it like who is they they who this is the transmission developer so once PJM identifies the need there's that competitive process where any transmission developer could put in a solution and when they put in those solutions they're coming up with different general routes and in this in this general high-level routes does

[01:45:21] anyone say hey this is somebody's backyard hey this is somebody's farm hey this is somebody's house is that ever done yeah well you're right at the scale that they show it you're not really seeing it at that level it's really at a zoomed out you could tell what counties maybe it goes through so then when you zoom back in and you go that's somebody's backyard what happens and that's that's good point because one of the things they evaluate in that process when transmission solutions are provided is constructability. They look at, is there an existing right-of-way? So, I know we were just talking about the HVDC line.

[01:45:54] One of the good things about that project is it's within an existing right-of-way. They're not, like you're saying, going through people's property and acquiring new easels. But there's a lot of power lines

that are going through people's property. I mean, that's what's happening with Valley Link North. That's what's happening.

[01:46:10] I mean, there are. And so, at what point does somebody say, Yeah, it's an existing right-of-way, but that's also Betsy Sue's backyard. When does that happen? And I think that's the TEAC meetings is where that dialogue could happen.

[01:46:26] And we have nothing to do with the TEAC meetings, nor does Betsy Sue. No, I'm serious, right? You could be part of that process. It's a public process. But will we have any—could a local government say, nope, not going there? I mean, people do put comments in, and they do—and the TEAC.

[01:46:46] Do we have veto power? No. Okay, thank you. So we don't have any, we can put comments in, but in the end, it's not up to us. And so Betty Sue, and I'm not joking, could just have a power line go through her backyard, and she had nothing to do with it, nor did the local body that she elected.

[01:47:03] Is that correct? Yes, they would have to get through that process and then get through the Virginia SEC, and if proved at that point, then there are cases, I guess if you're asking, We go to talk about, like, eminent domain. So in the Virginia SCC process, generally you need to make a good faith effort to acquire land, and you need to reach out to landowners and discuss that and what the compensation would be.

[01:47:31] If I believe in the Virginia SCC process, there are projects probably maybe 10% of the properties would have to go through that eminent domain process. No one likes to go through that process because it's a legal process. takes time and there's cost and it delays projects and it still has impact to landowners but you're you're not incorrect it's a crowbar thank you madam chair my apologies for jumping in no it's but i wanted to specifically answer your question the decision maker on the routing of the transmission line is the state corporation commission in virginia the planning process that takes place

[01:48:09] in advance of that as well as the final up to the final ruling by the state corporation commission The county has consistently provided comments, presented those comments to the board, and they've been submitted. But ultimately, we have next to zero authority to veto an alignment.

[01:48:30] If I may also answer Supervisor Turner's question about the relationship between FERC and NERC, the Federal Energy Regulatory Commission, is the policy-setting agency in the federal government for electrical transmission. NERC is the enforcement arm of FERC. So if you can look at the two agencies and kind of use the analogy, Department of Planning Zoning sets the standards.

[01:49:01] the zoning enforcement division within zoning does the enforcement so DPZ is the same as FERC planning and zoning enforcement is the same as NERC the enforcement arm of FERC thank you Joe supervisors let's do one minute let's do a second round for one minute if you need it so that to go really quickly so I don't want to take another three minutes apiece and then go to motion or motions but I don't know if everyone got everything answered and miss I'm going to go jump back to you ma'am. Thank you. Do we know who is assigned as the state

[01:49:40] consumer advocate for Virginia and where they're from and who they are? That is a good point. I did make note of it. Like you said PJM each state within PJM or territory has a consumer advocate that is part of the PJM member and is a voting member. I know it's with the state. I could look it up but i don't know off the top of my head okay but but there's so i mean my point is like there's one state consumer advocate for all of virginia correct that's correct and are they

[01:50:16] are they like on the board on the pgm board as a voting person or are they just sort of giving advice they they do have voting uh they have voting power okay okay all righty um i think

[01:50:30] I think I'm good. Thank you. Can you see the clock, Ms. Fixman? I can. Thank you. Okay, great. Okay. Ms. Umstead. Thank you, Madam Chair. It's a fairly quick question. I don't know if you saw that U. S. Energy Secretary Chris Wright, who was appointed, I believe, by the president in February of 2025, gave an interview to Tony Robbins,

[01:51:02] in which he said it was the goal of this administration to get data centers, transmission lines, power plants up and running much faster than before.

[01:51:18] And what was holding them back was state and local regulations. To what extent do you think that philosophy is going to impact local control, local zoning control in the future?

[01:51:35] I think we already, you know, the information we have already and that we can only provide recommendations. We do not have the authority to approve or deny these. And, you know, in the future, I don't know whether that will change or not.

[01:51:52] But as it stands, again, we are only advisory to both the PJM and the SEC when any of these proposed transmission corridors pass through our county. Thank you. Ms. DiCroni.

[01:52:08] Thank you, Chair Randall. So is a high-load register being proposed to track the number of hyperscale and other large data center proposals? Through the NERC process? Through NERC, through whatever process.

[01:52:27] I mean, I understand there might be a register that's being proposed. Yeah, so NERC is the only one I'm aware of that's looking to register the end user being a data center and then put reliability standards that they need to adhere to.

[01:52:43] Is that, so it'll be a regulated entity in the future? They will have standards that they would have to comply with, yes. Interesting. Yeah. And that would supersede, I guess, any kind of local standards? I don't know that. Again, it would be – It's really more from a grid reliability standpoint.

[01:53:08] Oh, okay. I mean, could they say no? Could NERC say no then to something that – a hyperscale data center that was creating reliability issues? I think, again, it's looking at the overall grid reliability and the functionality, which is the function of PJM with that, and whether they identify areas where there are deficient or constrained areas that may affect those decisions in how they approach large load customers in the future if there is availability of power there.

[01:53:43] The reason they created that working group is because they're starting to see how, you know, because of a lot of these large loads and how they're operating, and in some cases they'll turn off, they'll shut off power and go on backup up if there's like a voltage sag or something and so if you a lot of large loads come offline and one quickly it could impact the grid in a negative way so I think they're trying to put kind of standards around that so that they operate in a way that they don't impact the grid reliability you know the greater grid. Okay thank you. Thank you Mr. Sainz. Thank you

[01:54:22] Madam Chair. All right just to clarify and flesh out for me so that kind of the order is FERC, then NERC, then PGM, then the SEC with the local, in our case, Dominion regarding routes and transmission lines.

[01:54:38] Would that be accurate to say? Yes. That is the hierarchy. All right. And then, so FERC and NERC, then to the PGM. So, for example, the power lines that we have in front of us now, Golden to Mars, they're the ones who once said, okay, we have power issues or reliability issues.

[01:54:57] we need to create another route, then they have their engineers or whoever look in a certain area where they identify areas needed for more power, and then they say this is the area, and then that goes to, you know, from FERC to NERC, and then PGM, then PGM gives that information to the local entity, and then from that area that was identified, the local entity would then draw the maps, the lines, and then go to the SEC.

[01:55:25] Is that, would that be accurate? That is very accurate. Okay. all right thank you good job mr turner thank you madam chair i just want to reemphasize because more we get into the discussion the more i think to myself the only local control that we can exercise is approval of on-site generation if we approve more on-site generation if we can make for example suppose we pass a local ordinance that says if you're going to apply an application you're a high energy consumer and you want 300 megawatts you must have 150 megawatts delivered onsite to reduce the stress on the grid or we could pass an ordinance says within x years you

[01:56:04] must reduce your grid reliance by 75 percent by developing onsite power that's stuff that we have local control over i did not see a whole lot of references to onsite virtual power plants any of that stuff in the integrated resource plan this last iteration i just think dominion and pgm are are focused on more infrastructure, more infrastructure to meet demand, and I just think that's running us down a dark hole over which we have no control. If we can start to generate on-site and reward on-site responsible generation, I think we can really start to control this process. Thank you.

[01:56:39] So, okay. Mr. Sains went through the whole process. SEC actually decides where things are cited with no discussion with local governments or the homeowner at all. At one point you said something, and I caught this, maybe I misunderstood or didn't quite catch what you were saying, landowner approval is needed to approve a project. What is that about?

[01:57:03] So if you say there's a route being developed and it already is planned and it's approved by PJM and now the developer is going to develop that, transmission developers and develop the project, if they're citing a route, they need to get approvals. If it's going through a landowner's property and there's an easement there they need to get the landowner's approval to get that easement to build their and what if the landowner says no because i'm i have to be missing something because otherwise we wouldn't have all of our neighbors in the lovetsville and and and other places having power lines going through their yards that they don't want to go through their

[01:57:42] yards they haven't approved of any of this so what am i missing so they would have to get compensated if that transmission if that facility approval or compensation they would definitely need to be compensated if a utility is going through their property and an easement would be required so they would be paid for that easement and if they still weren't willing to to do they still don't want it they don't want it then i guess whoever is proposing that project could go through the process with Virginia SEC for M&O domain, which is a process of taking land, and no one

[01:58:18] wants to go into that process, but I believe that is possible through the state. It is crazy. Okay, thank you. Ms. Brixman, you have a motion, ma'am?

[01:58:34] I do, thank you. I move that the Board of Supervisors direct the county administrator to designate a staff member to monitor all public meetings involving PJM Dominion Energy FERC TEAC RTEP as well as engage regularly with representatives of these agencies in order to ensure transparency communication and proactive long-term planning around energy demands and infrastructure in Loudoun County second friendly well wait okay hold on hold on motions made and And I'm happy to give Mr. Krohny that second.

[01:59:10] Mr. Krohny, if you'd like that second, I'm happy to do that. I'm going to let Ms. Brixman do an opening before we go to Friendly's. Ms. Brixman. Thank you. Could we go back to slide 11, please? Colleagues, I changed one thing in the motion to follow FERC instead of NERC, based on Mr. Krohny's definition of NERC being an enforcement agency and not a planning agency.

[01:59:39] On this slide, you can see the green boxes are where the county starts to get engaged. The red boxes are where sort of the high-level planning is happening. So the idea is that we are at least aware of the planning of plans that could be impacting our county.

[02:00:02] With 250 data centers and more in the pipeline, Loudoun is in the unenviable position of needing more and more energy coming into the county, as Supervisor Umstead was saying. However, our community has been expressing frustration, shock, and surprise when these plans come to light or they come down to us, you know, to start talking to the SEC and start talking about the routing or that we like or don't like the routing.

[02:00:32] So staff did say during the presentation that we could potentially change solutions being presented if we are engaging earlier in the planning stage. But also, to Supervisor Umset's point, even if we can't have our absolute preferred location, at least we can advocate, we can be aware of what's coming down the pike, we can begin working on communication and potentially mitigation of routes with the community.

[02:00:59] And to Chair Randall's point, we know the ground truth. And so at least we can just have our eyes on the planning stages, advocate that staff said TEAC is where their stakeholder input, you know, with boards direction or boards approval, perhaps staff can offer input at the TEAC level.

[02:01:22] Just just so we can be aware and we're not kind of shocked and surprised in the community is not shocked and surprised when they learn, oh, my gosh, well, they're suggesting a power line and power line poles taller than the Statue of Liberty are going in my backyard.

[02:01:39] So I think it would behoove us to have somebody there, especially because obviously the planning folks, and I'm not saying they have to, but the planning folks have not been proactive with us to talk to us about the potential impacts on our county and our residents and potentially even our schools.

[02:01:59] So I think it really is incumbent on us, especially because, you know, we're the data center capital of the world. We need to have all this power coming in here. I think it would behoove us to kind of know what's going on and provide input as appropriate. Thank you. Thank you.

[02:02:14] Mr. Sainz, I'll go to you. Wouldn't you like to make her friendly? Yeah. Supervisor Brisbane mentioned why she took FERC out. But I would say, because as it's just highlighted when I asked Pat to go down the order, I would say, like, still, if Ms. Brickson would feel okay with this, friendly to add FERC back in, just, like, list them all, make sure everything's covered, because it does go to FERC, then goes to NERC,

so might as well just make sure we're attending all the meetings and have a presence at every single step of the process.

[02:02:47] but point of clarification I took out NERC because they're the enforcement body and I added FERC in the motion so if you look at the motion I took out NERC and put in FERC lovely names okay well in the motion in front of us the motion in front of us has NERC so that's what's going off of but but again like I said I read why not just put okay I'm fine if you want to add if you want to add things that if you want to add bodies that we that we potentially monitor I'm absolutely fine with that. Yeah, I think even though, yes, the NERC is the enforcement, but it does start in FERC, so might as well just be there at those meetings, too, if that's okay. So, FERC

[02:03:21] and NERC. Yes. Mr. Sainz, you want to go on and have any more time in your time, because that was a friendly. Oh, I'm supportive of the motion that this is fine. Thank you. Okay. Ms. Umstead. Thank you, Madam Chair. Madam Chair, may I ask a question through the chair to Mr. Hemstreet about what it's going to take in the way of staff time and whether it's possible to monitor these meetings remotely so that we don't have to have staff at every in-person

[02:03:54] meeting. Mr. Hemstreet? So I don't know the full answer to that right now. So if the board passes the motion, then I will go ahead and allocate amongst the staff that we have. I I anticipate it will probably take several different staff members, depending on the breadth of meetings there are that we need to monitor.

[02:04:17] And so we'll just assign it as other duties as assigned. If this comes back that this is too much for our current staff to handle, I would like to see that the county administrator be able to come back and advise the board as to whether or not we're going to need additional staff to meet the goals of this motion.

[02:04:50] Would you like to make that as a friendly amendment? Yes. Okay, well, you want to put it in a kind of friendly amendment form, and then we can check with Ms. Brooksman and Mr. Crony. Madam Chair. Yes. I don't need that direction.

[02:05:06] I mean, obviously, if we can't manage it, then I'll just ask for additional resources as part of the budget process. Would it be possible to just add on as a friendly amendment at the end of the first paragraph, in the event that the county administrator determines that we do not have sufficient staff to monitor these meetings,

[02:05:43] He is directed to return to the board with that information and a proposal as to how to carry out the intent of the board. So that would be a question, I think that's a question for Ms. Briskman at this point.

[02:06:04] For Supervisor Briskman. Supervisor Briskman, did you hear that? I did. I did. I don't think it hurts to have that as a friendly. I also don't think it's necessary because of what Mr. Hemstreet said.

[02:06:21] I'm sure that he would come back for resources if he needed it, but I don't think it hurts to have it. Mr. Crony, you're good with that? Okay. Anything else? Thank you. Okay. Mr. Crowbuff, can you come back just for a second? I think this is a good motion, and I was happy to second it, and I was more than willing to give the second to Mr. Crony because that's what colleagues do.

[02:06:44] But I do want to make sure one thing is clear because I don't want anyone to listen to this motion and think that we will have any control. I know Ms. Bixman said, and even if we don't have any say,

we can monitor, we can communicate with the community, and I agree with that.

[02:07:03] That's good, and I agree with that. But I don't want people to leave out and think that because there will be a staff that monitors this and comes back and tell us we have any control or any veto power because that part's not true. You know, I think the reasons, all the other reasons behind it is fine, but I just want to circle back around, Mr. Kroboth, even if we have staff that goes to monitor, come back and tell us and all that, would we have any final say or any decision-making power?

[02:07:34] We have no decision-making power other than to submit review comments for the FCC or any other party involved to consider when they make a decision.

[02:07:50] So we can say please consider this, please consider that, and submit comments, but we don't have any say and we don't have any veto. Okay, I just want to make sure that's said. I mean, again, I think all the other reasons given were great valid reasons to do this. I just don't want people to walk away and think because of this now we have a now we now we make decisions that we don't have in our power to make.

[02:08:12] I don't want people to believe that. I do want to go back with one more. I'm not I'm sure not still not quite sure. I understand. Well, maybe I just don't want to understand. So a person has a power line go through their backyard because that's the easement. Right. And you're saying they're going to be offered compensation.

[02:08:32] And if they don't want compensation, then imminent domain discussion could happen. Is that correct? But in the end, the statement of landowner's approval is needed is just not true because landowner's approval is sought.

[02:08:53] And I think that is true. But the approval is not needed for a transmission line to go through that backyard. Because in the end, they could say no and still have it. In the end, they could say no to any compensation because they don't want it.

[02:09:11] And then the domain could still happen. So landowner approval is sought. Landowner approval is not required. Is that correct? An easement is required. An easement is required. But the landowners, the easement that's on a person's land for that transmission line to go there, That's not, the landowner doesn't have to give their approval.

[02:09:34] That's correct. Okay, that approval is sought. That's correct. It's not required. What is the tools that a local body has to help landowners who don't want this in their backyards?

[02:09:51] I mean, they don't want the compensation. They don't want it. What are the tools we have to help our people fight? I think that's what we're trying to identify here is really that early stakeholder engagement process. And I think also whoever is the developer of the project is, whatever the transmission developer is, early engagement with them.

[02:10:11] They usually have open houses and outreach processes as they're developing the project and going through the permitting process. But being part of those and actively engaging with the transmission owner is probably a... I tell you, for Valley Link North, I'm going to join my constituents in Lovitzville in fighting this like it's the plague, just so you all know that in advance.

[02:10:34] Okay, Ms. Bixman, I will go back to you for a closing. Thank you, Chair Randall. Just to clarify, I believe staff said we could potentially change solutions being presented if we were engaged at an earlier

time.

[02:10:52] No, we don't have veto power, but I just want to make sure, a question to staff, the time that we could provide input would be at TEAC only or sometime before that? There is no project until there's solutions that are developed, and those are brought forth at the TEAC stakeholder review process.

[02:11:19] Okay, great. Well, I appreciate my colleagues supporting this. I think, for me, I think it's really important that we know when PGM posts identify transmission needs publicly and that we are informed about that.

[02:11:37] And then also, as staff deems appropriate, that maybe we provide input at the TEAC level. And again, I totally agree with Chair Randall. I know that we can't, you know, revoke.

[02:11:52] I don't know why the term revoke is coming to my mind. We can't deny, we can't, you know, we don't have control, but at least we can have maybe a little bit of input, we can have the knowledge, we can make sure that we're informed so our public can be informed. So, I appreciate my colleagues' support on this. Thank you.

[02:12:08] All right. Supervisor Bricksburg made the motion. Supervisor DeCroene, second the motion. I'm happy to say aye. Aye. Aye. Any opposed? That motion will pass 702, with Mr. Letourner and Mr. Kirchner being off the dais.

[02:12:23] Are there any other motions on this item? Thank you very much. Appreciate you being here. Thank you. All right. Let's go on and do Let's go on and do happy pause Happy positive item number 11 if anything has anything changed from the one when we heard this in the public hearing Oh, it has okay. Well, let's get the changes and then I'll go to mr

[02:12:59] crony for a motion supervisors i want to just remind everyone when things come out of um committee i will usually make the package motion um but when things come out of public hearing i usually go to the district supervisor so just highlight this is that okay mr crony highlight highlight this on the changes okay all right okay all righty so on june 29th the applicant resubmitted their

[02:13:35] application and made changes to the reduced setbacks specifically at the eastern property line, which is shown on the screen. It's the right side, it's the rear of the house. The application proposes a reduced setback of 45 feet for an approximately 100 foot long portion at the rear of the house and 60 feet along, a 60 foot setback along the remainder of the eastern property boundary. There were no changes to the previously proposed reduction at the northern and southern property boundary. And this change to the setback at the eastern property boundary

[02:14:11] increases the distance of the kennel use from the neighboring residential property at the rear. And as a result of the changes to the setback, the outdoor play area was decreased by 3,412 square feet. There were no changes to the maximum amount of dogs proposed with the kennel use.

[02:14:30] Overall, staff could support board approval of the application subject to the conditions. However, the applicant's proposal of 25 dogs conflicts with the board's initial motion that supported 16 dogs. If the board wishes to support additional dogs for the kennel use, the conditions will need to be revised.

[02:14:48] I'd also like to note that at the public hearing, there was a question about the road's existing traffic condition. Staff has looked into this further, and based off the applicant's traffic memorandum, the

proposal will generate a minimal increase in trips. Staff finds that the proposal would have a minimal impact on the surrounding roadways and operate at adequate levels of capacity. That was the that was the applicants Study that they gave the traffic memorandum. Yes. That we didn't do one that we're doing ourselves on that. It was the applicants. Yes, that that was what they were they worked with.

[02:15:26] Staff. Oh, okay. Yes, I was your staff to produce that for the application. There was also a question on the number of complaints received prior to November of 2023. Staff has also looked into this further, and there were no complaints received by planning and zoning prior to November of 2023.

[02:15:42] Just the initial complaint that came in at the beginning of November that notified the property owner of the zoning violation and led to the remedy of the violation. All right. Thank you. Thank you. Thank you. Mr. Crony, would you like to make a motion, please?

[02:15:59] Yes, Chair Randall, I can make a motion. I move that the Board of Supervisors approve LEGIE 2024-0012, Happy Paws K-9, SPAC 2024-0021, and SPAC 2024-0024, subject to the conditions of approval dated July 14, 2026, with a revision to condition 2A, limiting the kennel to a maximum capacity of 20 dogs.

[02:16:29] And based on the commission's findings for approval, provided as attachments one and two to the July 21st, 2026 Board of Supervisors Business Meeting Action Item. Second. Discussion on the motion, Mr. Crony. Yeah, I just want to thank the neighbors and residents for all of the input on this application.

[02:16:51] Happy Paws is a small business operating in a residential community. So I believe it was important that the applicant reduce the number of dogs allowed to 20 from the requested 25, and that would be inclusive of personal pretz.

[02:17:09] And we work to increase the setbacks, especially on the eastern boundary, closest to the neighboring home, and limit the number of dogs outside at one time to no more than 12. I believe these conditions will help reduce the impact of the business on the community, on the surrounding community.

[02:17:30] We heard from both sides that, you know, it's a wonderful small business, well run and professional, and these types of businesses are not easy to find. It's a unique model and innovative. But we also heard from neighbors who expressed concerns about land use, scale and intensity, compatibility in a residential community, noise, health impacts, and a reduction in the required setbacks.

[02:17:58] That's why I worked with the applicant on the setbacks to see if we could get them closer to the 100 that is required. This use is heavily screened from surrounding residential uses by existing mature trees on the property. And there is an existing six-foot wood panel fence enclosing the outdoor play area.

[02:18:19] On the lot line, the applicant will provide interior fences to ensure the use is excluded from the required buffer areas and the proposed setback. When outside, dogs will be rotated through separate outdoor fenced enclosures.

[02:18:35] and the applicant committed to an acoustical consultant to ensure compliance with noise regulations, proper waste handling and disposal, protection of water quality and buffering, as I just explained. I do agree with the Planning Commission that kennel use specific standards are needed. I do agree with that to provide greater regulatory oversight. We really don't have this kind of oversight in our zoning ordinance for kennels locating within residential areas so I do support adding this to the work plan so we can have consistent standards.

[02:19:16] as i said happy paws is a well-run doggy daycare i've met marcel and beatrice at their business and i know they're very committed to being a good neighbor And that makes a big difference. And I believe the modifications strike a balance between the neighbors' concerns and the continued operation of the doggy daycare business.

[02:19:42] Thank you. Thank you. Ms. Brixman. Ms. Brixman. Thank you. I'm going to, of course, support this. I'm very appreciative of Supervisor Tacroni's work on this application.

[02:20:01] I did want to make a friendly that, um, the owner's dogs would be excluded from the 20. Um, but supervisor to crony told me that she wouldn't accept that friendly. So, um, I just, I, I worry that, um, I just hope that they can still, you know, be, be in the, um, I just hope that they can, the business can survive being restricted to 20 dogs.

[02:20:28] Really, it's 16 dogs because their dogs are excluded from, you know, the dogs that are coming in for the business. I think it's a shame that they've lost 3,000 square feet on that with the increased setbacks, especially because I think the neighbor to the east is one of the neighbors that was fine with it and didn't have a problem with the business.

[02:20:56] So this is a tough one for me. I do wish that they could be allowed to have more dogs, but I'm going to not follow my sword over it, and definitely I will support the application. I really do appreciate the business owners showing me their business and everything that they do for the dogs.

[02:21:14] It's really, really admirable why they started the business, and they treat the dogs really, really well. And if I had a need, I might go there. So anyway, thank you very much and happy to support. Thanks. Mr. Sains. Thank you, Madam Chair. I can support the motion that Supervisor DeToni made.

[02:21:35] The reason why I can get to a yes with this is with the number of dogs, so 16 plus the four of their personal pets. I think that's a good medium. I did speak earlier at the public hearing about looking at the hours, but with the reduction in the dogs that are going to be there, I think that works with the hours that are being proposed and not changing the hours. So I can get to a yes with this and with the work on the setbacks. Thank you, Mr. Turner. Thank you, Madam Chair.

[02:22:05] My understanding, can I address staff? Yes. My understanding is that they had originally requested 30 dogs. So initially when the application came in for staff review, they were requesting 40 dogs. And so they've come down from the initial 40. When it went to the planning commission for the first time, they had dropped down to 30. Okay, so they dropped down to 30.

[02:22:28] That's a maximum of dogs at any one time, so they could have an average number of dogs of 10 a day or 12 a day on rotating shifts, so one dog could come in and another dog could leave that afternoon, so it's 30 on-site at any given time, and now basically the amendment is 20, including their owner dogs, on-site at any given time maximum, right?

[02:22:50] Yes, that is correct. Okay. Okay. And if I'm correct, the applicant proposed, settled on, I want to say 30 dogs. I'm sorry, I was forming my next question, but they settled on 30 dogs. So presumably, they've made a profit and loss decision that they could, in fact, be viable as a business on 30 dogs. But 30 dogs is what they had proposed at one point, right?

[02:23:19] Yes, I would defer to the applicant to answer any questions on profit margins. Okay, right, right. Yes, they have covered 30. Okay, so from a pure math perspective, if we constrain them to 20 dogs

versus 30 dogs, they could theoretically just raise their prices on the remaining 20 dogs to cover their losses for the 30 dogs.

[02:23:37] But you don't need to answer them. It's just, like you said, profit and loss is their business. That's all I have. Thank you. So I do want to say that I did hear their neighbors. And I don't think that it is okay for people to start businesses without coming in, getting all the proper permitting and doing all the proper things.

[02:24:01] And then only when that is found out do we kind of come back and say, sure, go on and do it. That's not okay. I understand. I mean, I did have staff go out there, and they had nothing but positive things to say about the business. They were showing everything, and that was good.

[02:24:18] But just, you know, I don't want the message to go out that says, do what you do until somebody complains and you get caught, and then come in and we're going to get you in order. That's not how that should be. So I want to say to the applicants, although I'm going to support this, and I appreciate what you all are doing, especially because so many of your dogs are dogs of first responders, I don't think it should have happened this way.

[02:24:43] I will say that. I do want to be, I do want to say, having said that, that because our first responders work really weird hours and we had so many first responders reach out to us and say that they take care of our pets and take care of our dogs.

[02:25:03] And I always want to support the people who support our first responders as well and support the first responders, you know, family that happens to have fur. So I want, I am a little, what happens if the family wants to get two more dogs that would be their dogs?

[02:25:24] I mean, so we are, we, because we're saying four because the family has four now. But are we saying that we're capping in a 20 so the family should not go out and get two more dogs? Is that, I just want to make sure we're saying that. It's 20, 20 is a cap.

[02:25:40] Yes, it would be 20. 20 is a cap. Inclusive of personal dogs. And if for whatever reason, they, you know, something, and I know, yeah, 20 is a cap. 20 is a cap. Okay. All right. That's fine. I can support that. And I can support, and Ms. Connie, one, she's done so much work on this, and two, she's a dog person.

[02:26:01] She actually keeps dogs and kennels dogs overnight, and she fosters dogs. And so when it came to not just working out the details or the setbacks and stuff, but really understanding the dogs, I also really appreciated your knowledge of that.

[02:26:21] So I will support you on this effort, and I'll thank you all, but let it be known we shouldn't do it like this in the future. All right, would you like a closing? Well, I did want to address one of the speakers asked if this could be just with this owner because they are very responsible and good neighbors.

[02:26:43] But our county attorney said, unfortunately, we can't do that. We can't restrict the use with just this owner. Am I correct, Mr. Rogers? Yes, that is correct. Otherwise, I would have done that because I think, you know, that makes sense because you guys have a unique model.

[02:27:02] a unique business. And, you know, again, you know, I tried to find a balance. I did listen to the neighbors. I met with the neighbors. And I went to Marcel and Beatrice's home and saw your business. So I think this provides a balance. But I am looking forward to coming up with regulations for this type of use

that are consistent so that we have something to turn to when something comes in again, you know, with a business like this so that we can look at a model

[02:27:39] and have standards that are, that we can use to make a decision based on, you know, because you guys have a model, you guys are doing a good business, but I would like to have standards, specific standards. So that's it. That's my closing. Thank you. Mr. Crony made the motion.

[02:27:58] I second the motion. All in favor to say aye. Aye. Opposed? That motion will pass 702. Thank you very much. Supervisor, we have a long way to go tonight. Let's go on and do one of the BMIs, Mr. Sainz. Let's go and get your BMI done, okay? Okay. All right, number 14. What normally happens on the BMI is I allow the person bringing the BMI to speak on the BMI and then they go to a motion and then that's how it works.

[02:28:31] So would you like about three minutes to speak on the BMI before we go to a motion? Sure, well I can just make the motion, speak on it and then -- Either way is fine with me. I move the Board of Supervisors direct staff to research opportunities to apply local regulations related to the operations of existing data center backup generators and present recommendations to the Board of Supervisors for consideration and adoption.

[02:28:55] Second. Discussion on the motion. Thank you, Madam Chair. There have been some instances of backup generators creating major noise impacts for our residents in Loudoun County. One recently was back in March that was highlighted by Ms. Julie Carey of NBC4 of our local affiliate.

[02:29:16] We covered a cloud HQ generator again issued back in March when the data center had to run their backup generators and it sounded like a helicopter hovering over Ashburn for hours on end and could be heard from miles away from Loudoun County Parkway and Waxpool Road onto Sterling Boulevard.

[02:29:32] Just this past weekend we had a Vantage loss of use of their on-site gas turbines in Sterling and for hours, for almost 24 hours the residents heard a consistent loud noise from the backup generators. We need the ability to address backup generators that are already existent, and this BMI is, if approved by the board, will give staff direction to look into this issue fully.

[02:29:55] Again, some of the reason why this came up is obviously, yes, there are emergencies when the data centers, for whatever reason, lose their power from the grid, or in the case of Vantage, they lost their on-site power, then they have to run their backup generators.

[02:30:12] the backup generators are diesel fuel, plummeting a lot of smoke in the air, and also they're very, very, very loud. So to just have unchecked ability to run the backup generators for 24 hours, 48 hours at end is, I think, a nuisance to our residents.

[02:30:32] With this BMI, this gives us the, hopefully, the authority, giving staff the direction to research this and come back and hopefully giving us the authority to implement some local ordinances to go to them and say hey if you're running the backup generators one let us know right away because currently right now by there is no mechanism for them to do that they can do that by the you know hopefully by doing a good community partner and giving us a notification however that is not the case majority of them did not give us any notification that they're running their backup generators and the reasons why are giving us updates on what they're doing to get back onto the grid for power and stop the backup generators

[02:31:11] to again say for example uh friday they you know advantage lost power but from friday night around 7 30 8 o'clock p.m. to the next morning on i believe whatever was it thursday into friday excuse me into friday evening they're running the backup generators that's almost 24 hours of the loud noise from the backup generators just continually continuously running with this bmi if approved hopefully we can look at saying okay understand there's emergency situation but however we need to have a quiet period for our residents to not hear this noise from the backup

[02:31:47] generators so these are some of the reasons why we brought this initiative forward and i will end and i'll continue in my closing thank you thank you sir ms brooksmen thank you i appreciate the bmi I think it's a great idea. I just had a question for Supervisor Sains, if I might, through the chair.

[02:32:08] Sure. Why are we only talking about backup generators and not about on-site power generation, like they have advantage to? And could we add that to the motion as a friendly? So backup generators, again, are only technically for emergency purposes when they're losing power.

[02:32:30] So they're not running all the time as the Vantage with their on-site turbines, which is a completely, those are two separate issues. We have a working group looking into how to solve the noise issue with Vantage.

[02:32:49] So that's why. It's two separate issues. Because, again, if you look at majority of all of our other data centers are on the grid. So when they lose the power on the grid, that's when their backup generators kick on. It makes a loud noise, et cetera, et cetera. So with Vantage, it's a little bit different scenario.

[02:33:07] But we are looking into ways where there's a working group that's currently working. That's actually one of the initiatives from the working group that brought this idea forward. Okay, so the working group is going to be looking at sort of the same thing in relation to on-site power generation.

[02:33:29] They're going to look into ways to capture the noise regarding Vantage, because currently right now when our zoning enforcement— I'm sorry. I'm sorry. I guess the working group is only thinking about Vantage, or is the working group also thinking about any other on-site power generation?

[02:33:50] Well, we only have one right now, but in theory, that would cover if there are any others. And again, Vantage was an outlier, I guess you could say, anomaly, because at the time when Vantage was— when they went to on-site power, that was the administrative process and did not come forward in front of the board.

[02:34:11] Yeah, yeah, yeah. Now we've corrected that, so any on-site power proposals will now be a special exception that come in front of the board. Okay. Okay, so we might be able to apply it during that special exception process. Okay, I'm happy to support. I just think that we have some other sort of maybe related things, but I'm happy to support. Thank you.

[02:34:32] Thank you. Thank you, Madam Chair. So I'll support this primarily because it is simply to direct staff to research and come back to the board with information.

[02:34:50] I was concerned when I read the headlines on this that the proposal would be to regulate backup generators out of existence, but that's not what's going on here.

[02:35:07] But I do feel compelled to say that if Dominion feels the grid's about to crash and everybody's going to lose power in the middle of a 95-degree day, they will order the data centers to go to backup generators.

[02:35:25] And I don't believe that the county should stop that, because the alternative is the data centers are going to continue to suck up energy off the grid, and it'll crash the grid for everybody.

[02:35:42] I do think that there is additional work that can be done by data centers to dampen the noise that comes out of the generators, whether it's a later generation generator or whether it's putting concrete walls between generators and the properties beyond the data center.

[02:36:08] But I do think we do run the risk if we try to regulate backup generators out of operation and the grid fails, we run the risk of everybody, every homeowner running to Home Depot and getting their own generator.

[02:36:25] And that's going to have every neighborhood is going to be filled with generator noise. I've lived next to a home where that has happened. And I don't find it objectionable because people are trying to save their food or keep air conditioning going.

[02:36:42] But this is all interconnected. So I'll support this research proposal for tonight. And I'll see how it goes when staff comes back. Thank you. Mr. Crony. Thank you, Chair Brenner.

[02:36:58] Can I ask a question to Supervisor Sainz? Absolutely. are you talking about tier two generators or tier four and or tier four and equivalent we're talking about all of them okay um thank you so i put in a proposal to our legislative program that um would require or would look at using tier four generators as non-emergency units under virginia regulations so my understanding is that um

[02:37:31] You know, that they're cleaner, Tier 4, but relaxing regulations to use them as power in non-emergencies is what I've heard is being considered.

[02:37:47] So I think that needs to be clarified in Virginia law. And also, I would love to see battery energy storage used as primary backup power before you go to a diesel generator.

[02:38:03] So we have 5,900 approved generators in the county. I was shocked to hear that. I got that figure from an organization. And not all of them are Tier 4, but if they are Tier 4, they should only be used for emergencies, not as a power source, and not 24-7.

[02:38:25] So that's an issue. And then another issue that I would like to be taken into account is the fuel. The diesel fuel that is being brought into these data centers for these generators is significant.

[02:38:41] And the diesel trucks. So I do think there are some health impacts, you know, with emissions and diesel fuel use. So I think that that also, I don't know if you'd be interested in looking at that, because the diesel fuel is a significant issue.

[02:38:59] These are like thousands of gallons of diesel fuel, millions of gallons of fuel. Yeah. No, I know. But, well, but it's an issue. I mean, I think battery energy storage is what they should be looking at, to be honest. That's a different shoe.

[02:39:16] But that's something that, you know, concerns me. So that is, I'm just throwing out there, that was something I put in our, in our, in a proposal was to really look at when are we using these. Is it just truly for emergencies or are we using them for non-emergencies as power?

[02:39:38] I'm just, but I'm happy to support it. Would your working group, through the chair, would your working group look at things like this? So, respectfully, Mr. Crony, I think those are two separate issues

about having them look at powering their backup generators with another source. Currently, that's how they power the backup generators is through diesel fuel.

[02:39:58] So the trucks coming to refuel them after they use them for a period of time because they obviously ran out of fuel, those are the trucks that carry the fuel just the same way a truck brings fuel to a gas station station. That's what the power of that truck to bring the fuel.

[02:40:14] So I think, again, those are two separate issues. The impetus of this is to, again, have staff look at how we can set a limit on the hours of generator run time. Because right now, there is no limit. They can just run forever. So in theory, say if somebody loses their power from the grid, they kick on the backup generators, And it might take 4 hours, 6 hours, 8 hours, 12 hours, 24 hours, 48 hours, 36 hours, keep going and going until they get their power back onto the grid.

[02:40:48] So the emphasis of this is to say, no, there needs to be some set limitation to how long these folks can run their backup generators using the diesel fuel where we've seen the smoke coming out of the smokestacks and also noise. Because I would never have thought you would have been able to hear a backup generator noise from Loudoun County Parkway and Waxpool Road all the way into Sterling Boulevard.

[02:41:12] That's, you know, that's, you know, noise. So that's what this is. And also to require notification to the county, because again, right now there is no notification process. Oh, sorry. Thank you. Thank you. Ms. Kless.

[02:41:31] Thank you, Madam Chair. And I would support this motion. And thank you, Supervisor Sains, for the discussion because I also am hearing from constituents regarding the generators running. I've been sent pictures of the smoke that they can see that's coming off of the top of the roofs and how there has been discussion with how they're having health issues with breathing and burning eyes and that sort of thing so I think that this is

[02:42:09] something that we should we should continue to look into before for our constituents thank you thank you mr. vice-chairman thank my chair with permission of the originator I'd like to propose a friendly here's the friendly I move that the Board of Supervisors direct staff to research opportunities to apply local regulations related to the operations of existing data center backup generators, comma, including mandating the use of selective catalytic reduction and diesel particulate filters on all backup generators below Tier 4 emission standards, comma, and

[02:42:48] present recommendations to the Board of Supervisors for consideration and adoption. Mr. Sainz? I wish it came to me ahead of time, Mr. Turner, because I don't even know what the index thing or whatever you just mentioned, I don't even know what that is.

[02:43:06] i can explain it we're in your time point of order madam chair was that was that friendly sent out i don't i i'm gonna have trouble voting on that friendlies are not normally sent out it's it's a friendly but mr but mr saynes can accept i mean you you we've had we've had another discussion on friendly friendlies are not normally sent out so stop stop mr turner's time and thank I don't know, give him 15 seconds back.

[02:43:35] Friendlies are not normally sent out. I think we've had a friendly tonight already once, haven't we? Those are not normally sent out. I'll just have to have it repeated. Mr. Turner made the friendly. Mr. Sainz said he didn't understand really what Mr. Turner just said.

[02:43:53] Mr. Turner is going to, in his time now, explain it. And if Mr. Sainz would like him to or anyone would like him to, he can repeat it again. but friendlies are not normally sent out. Mr. Turner? Thank you, Madam Chair. So very quickly, selective catalytic reduction dramatically reduces emissions from backup generators.

[02:44:12] Of the 5,900 backup generators, I would bet probably over 95 percent of them are Tier 2 generators. Selective catalytic reduction improves emissions to Tier 4 standards, which is the highest standard. All diesel backup generators can use a diesel particulate filter, which eliminates particulate matter 2.5, which is especially unhealthy and dangerous.

[02:44:34] And so any backup generator should have an SCR unit and a diesel particulate filter. I believe tier fours already have it incorporated, but most of ours are tier twos. What this does is we've got an opportunity here. If we are going to regulate backup generators, which I think is great, we should include specifically an ability to demand that all backup generators have selective catalytic reduction diesel particulate filters attached as part of our ordinance.

[02:45:00] So it really adds some teeth to our ordinance if we're going to go in this way. And since we're only going to investigate research opportunities, I thought that ought to be included in the conversation. Would you like to accept that friendly? Can I ask a question first? Sure. You're still in his time.

[02:45:15] With your research you've done on generators and whatnot, the data centers, do you feel that these are already -- because what you spilled out, it sounds like these should already be on there so do you know if they are and who would regulate them or would that be DEQ during the process that you know when generators put online they have to go through DEQ for emissions and permits and what not so shouldn't these already be on there or that's my question they're not on there the vast majority are not on there and can I address the county

[02:45:53] you have 17 seconds uh mr rogers if we pass an ordinance requiring retroactively all backup generators have scr and diesel particulate filters can we do that i don't think so we would need to look into that as staff i don't know what authority we would have to do that at this time but it might be a good legislative initiative okay okay all right all right i will take the friendly to for staff to look into the index regulator thingy and come back because at the end of the day staff is

[02:46:29] going to look into this further and come back with their findings and if we can't do it with authority that we have already vested it from us because as everybody knows we're dealing real estate so mama may i if we don't have the authority part of the motion is for staff to come back with how we can get this done so so that's fine i'll accept the friendly and i'm the seconder i would be happy to accept it too for the record um would you read that one more time yeah yes okay you find it well

[02:47:08] while you find it i'll do my comments you found it okay for the record will you do will you read it one more time i move that the board of supervisors direct staff to research opportunities to apply local regulations related to the operations of existing data center backup generators comma to include mandating the use of selective catalytic reduction and diesel particulate filters on any generator not meeting tier four emission standards, comma, and present recommendations to the Board of Supervisors for consideration and adoption.

[02:47:38] Okay. Thank you. So over the weekend, two things happened. We were at code red air quality because of the wildfires in Chicago, in Canada. I contacted DCC and contacted many data centers

individually to ask them not to run their generators while we were in code red because of the wildfires. Only 13 got back to me and agreed that they wouldn't. And I appreciated those 13 getting back to me. But it took me hours to contact those data centers. And DCC

[02:48:14] helped me. Mr. Levy did help me. But it took us a long time to do that. To be able to put something like that in the regulation would be really important, that if it is a cold red air day, with the exception of an emergency, and I did ask what an emergency was, and they said an emergency was if power goes off, but in a cold red air quality day, to say you can't run backup generators of any type on a cold red air day would be a really good thing to have in a regulation that we do.

[02:48:47] And truthfully, I do think Mr. Levy and all the data centers that did help, but the data centers themselves could help more in those moments and not, you know, sitting there making phone calls and being on my, you know, for hours was crazy.

[02:49:05] And even then, only 13 agreed. The other thing that happened is the data center, I won't mention the one because it doesn't really matter, did go to their backup generator. I got, I started getting emails, emails, emails, there happens to be one in Mr. Letourneau's district. He's gone. He's out of town.

[02:49:20] I reached out and to the data center owner and I said, why are you running your backup generators? People can hear them and they're loud. And I was told a transmitter had busted and he gave me, you know, exactly how many they they were running, exactly how many they were going down to, exactly when they would be off.

[02:49:44] I then gave that information to the community. It was all they needed. They were like, okay, thank you. So the truth is to have maybe data centers, if you're listening, you know, some of this communication would really be helpful without us having to chase it and chase it and chase it and chase it.

[02:50:05] If you know your generator has to go on for whatever reason, and as far as I'm concerned, Power outage is one of the only, this was a transformer, transmitter, let me see what the word here, transformer. Then let us know that in advance, and so then we can tell our constituents, a transformer went out in this data center, we're probably going to, it's probably going to be out for this long, this is how many backup generators are running, this is how long they're going to, once we told them that, their response was, oh, okay, because they knew that they would be out within the next, you know, seven hours, and this wasn't going to be something and it's going to last another, you know, three days.

[02:50:43] So having some regulations about when these things can happen is really, really helpful, and having better communication would be really also very helpful. So fully support this. Thank you, Madam Chair, and thank you, my colleagues, for the discussion, and it sounds like the overall support of this.

[02:50:59] And, yes, again, this is directing staff to, one, look at setting a limit on hours of generator run time, including require pauses requiring pauses during generator operation in emergencies like the situations that we had with Vontage and Cloud HQ where it was more almost 24 hours and then some.

[02:51:16] I think that's a long period of time for people to hear this noise especially if you're in the close proximity to the residential area because these things are very loud if you have never heard them before. This also directs after required requiring setting up how we can set up a notification process for the data centers to alert the counties prior to running generators for testing purposes and notification related to emergency use. We do have that right now. You would think they would do that just to be good neighbors

but they don't. Also direct staff for other other regulations for board consideration including the creation of civil penalties for violations if the generators are running past

[02:51:53] their approved time frame. And again you know this staff will do their homework and research come back if we don't have the already vested authority they'll suggest how we can get the authority because again like remind people we are dealing rule state if we don't have the vested authority already from the commonwealth we have that we can't do anything we have to go back down we have to go to the general assembly and ask for these things and i know a lot of people we've been getting emails oh new york uh set a more uh moratorium oh maryland's looking at prince george's county's looking to the moratorium they're not doing rural states virginia commonwealth is a

[02:52:28] in real estate so these are some of our limitations so thank you for the dialogue the conversation thank you for the support on this the direct staff to do their their homework and come back look forward to what they have thank you thank you so um mr um saints made the motion i second the motion i'm able to say aye aye and opposed miss bricksman i'm assuming you're saying aye yes i have motion passed 702. all right we've been on the day it's almost three hours how y'all doing

[02:52:59] let's do this let's go on and um and have uh and do uh nominations so if you have a nomination please put your light on let me find mine but i have to get it just a minute everybody go get them

[02:53:30] miss glass thank you madam chair i nominate mr patrick velchery as an at-large representative on the Facilities Standards Manual Public Review Committee. I nominate Dr. Shakira Mundin as net large representative on the Community Services Board.

[02:53:46] Thank you. Mr. Crony. I nominate Madeline Skinner for the Zoning Ordinance Committee. Oh, yay. Mr. Anybody else? I will nominate Michelle Rosetti to the Zoning Ordinance Committee for the NBBIA slot that is currently being held by Matt Lawrence.

[02:54:08] anybody have a nomination yes ma'am i nominate mary krueger as the lending institution representative on the affordable dwelling unit advisory board okay all your faces you're funny all right anybody else all right thank you all right supervisors let's take um our dinner break let's take uh

[02:54:36] 15 minutes let's get back on this day is by 905 turn me on okay

[03:28:54] thank you okay we are back a little later than i i plan to be i apologize miss bricksman are you still there i am okay we're going to do um number item number seven and then we're going to do item number 15 i know that we have staff here for the dpz work plan i understand that and i'm sorry But we have so many motions on the dais for the DPC work plan that that could take a while to get done.

[03:29:27] So we may be able to try to get everything else done in advance of that. So I apologize to the staff who are here for that, but that's the order we're going to go. Mr. Kirshner has joined us. He asked me in the back why 7 wasn't on consent.

[03:29:43] I did not have a good answer for him. we're going to go to seven and um there is a how long is this briefing i have 16 slides whoa that's a lot of slides we appreciate you but that's that's a lot of slides um supervisors do who need who would you all like to see the full presentation and i'm looking for people especially who are along route seven which is almost all of us i guess Well, that's also true.

[03:30:23] That's also true. Would anyone like to see? Let's ask this. Are there any highlights you can hit for us? Well, it's very similar to the previous safety and operations studies we've done for Route 15 South.

[03:30:40] Route 50 we brought just a couple months ago. The highlights are the data we collected and the volumes collected do demonstrate that there is a speeding problem and a crash problem um and so we did the same analysis the crash hot spots the volumes the speeds and our recommendations are for short-term recommendations which are the same um low cost easy implementable safety focused improvements um and they would be forwarded to a future cip

[03:31:16] deliberation and then for the long-term improvements those are the higher cost improvements at the intersections that were identified as hotspots and they're all in the IIP already okay they're all ranked in the IIP okay all right all right that makes sense um Mr. Kirscher you think you can do this inside of a motion I sure can will they do you want to go to a motion sir I would I move the Board of Supervisors endorse the Route 7 West safety and operational study and direct staff to for the um the recommended short-term improvements to a future budget process for consideration prioritization by the Board of Supervisors and recommend that the long-term improvements be improved to the intersection improved program? Second. That's the draft

[03:31:54] motion, correct? Okay, great. Second motion, Mr. Kirshner? Just very briefly, as everyone here knows, and I don't think it's any surprise, but sometimes we forget, you know, we're always talking about affordable housing, that sort of thing. A lot of our affordable housing, believe it or not, is out of the county. Out of the county? Out of the county. And that's just by nature of the way the markets are driven in many ways. And what that causes, of course, are a lot of increased traffic back and forth in these major arteries which include 15 and obviously route 7 and so I think it's really incumbent upon us and I want to thank staff for the really hard work that you guys have done on this this is super important I think these short-term recommendations and ultimately long-term

[03:32:31] capital recommendations that we are kind of endorsing here and going forward on are going to make a ton of difference for those who travel that corridor up and down on every day I mean I travel it every day obviously on the very I'm very close. I come out at the Route 9 Payonian Springs exit there and see a ton of traffic and it's slow and I mean I can't wait till that extra lane is put in. I know that's not part of this. These are but the extra lane is put in from Route 9 all the way to the Greenway. It's going to make a huge difference for me personally and I think all these improvements will make it a much safer route for those who come work in Loudon or go through Loudon and those who actually live in Loudon and access

[03:33:11] Route 7 as a major artery to access their work. So thank you for the hard work that you've done on and I would appreciate all my supervisors' endorsement. Thank you. Anybody else? Ms. Bricksman. Happy to support. Thank you. Anybody else? No? Mr. Turner.

[03:33:30] Thank you, Madam Chair. My question's for staff, if I could. So the long-term projects are moved into the IIP. Are they existing projects in the IIP that already have been prioritized, or are they new projects being added into the IIP?

[03:33:45] They are in the existing IIP and are currently ranked. Okay, good. That's what I need. Thank you. All right. Mr. Kirsten, make the motion. I second the motion. All the people who say aye. Aye. Any opposed? Aye. That motion will pass 801 with Mr. LeTurne being off the desk.

[03:34:04] Okay, supervisors, I'm taking you to item number 15, which is a BMI. As we do in BMIs, there is an introduction on the BMI by the person making the BMI. This time, there's five people on this BMI. I am happy to make the, well, happy would be the wrong word.

[03:34:23] I am willing to make the introductions and make the motions unless there's objection for anybody else who's on the BMI with me. Okay. So I'm going to start by saying this. This is a very uncomfortable moment for, I think, the entire board.

[03:34:39] I will also say over the past, I don't know, 18 months or so, with the exception of Ms. Umstead, Every one of my colleagues have come to me with some concerns about the finance chair, and every time I've turned them back and said, "You need to go talk to the finance chair.

[03:35:02] Go talk to Mr. Briggsman." I don't know who has done that or who hasn't done that, but I haven't had a colleague except Ms. Umstad, even the ones who haven't signed on to this BMI who have not come to me with concerns. What I'm going to do right now is read the two last points of our Code of Ethics and Standards Pledge, and then I'm going to make a motion. If at any time a member of the Loudoun County Board of Supervisors becomes aware of his or hers intentional or unintentional

[03:35:39] violation of this Code of Ethics, said person will immediately make that violation known to the two highest-ranking members of the Board of Supervisors in accordance with the Board's approved rules of order, not involved in the violation. Treat the public, staff, and each other with professionalism, courtesy, and respect.

[03:35:58] Respect all opinions and maintain a special atmosphere in both public and private meetings. That is the ethics pledge that we all signed. I'm not going to use all my time right now to make an opening, because I don't think That's fair because it gives me more than one shot at the apple so I'll go on and I'll make the motion and then I will do an opening and then I will go to Ms. Bricksman and then anybody else who'd like to speak.

[03:36:26] I move the Board of Supervisors change the Chair of the Finance, Government Operations and Economic Development Committee to Supervisor Karan Sains. Motion made and seconded by Supervisor Glass. As I said, this is a really uncomfortable moment for us all.

[03:36:44] I think it is for us all. If it was one thing, if we were talking about a single incident, we wouldn't be having this discussion right now. But it hasn't been a single incident. It's been multiple incidents that have caused pain, harm, confusion to the body as a whole.

[03:37:12] I don't remember a time except a resolution where five people have signed on to a BMI. And I have had colleagues, again, who are not even on the resolution, who have said to me that this should have happened before.

[03:37:32] And I have colleagues, obviously, who are not in the resolution, who don't believe it's time to do this now. It's hard to know when it's time to make a change. But after, and if I need to, in my closing, detail all the things that have happened, I can.

[03:37:53] I don't particularly want to, but I can. But there has been enough things, and they have gone on long enough, and they have been painful enough, that it is one thing to be a supervisor.

[03:38:11] It is another thing entirely to be in leadership. Leadership has to mean something. Well, being a supervisor means something, but leadership has to mean something, too. I respect the Bricksmans and I shared voters in the Algonquian district who put her there.

[03:38:28] And I respect that she is the supervisor from the Algonquian District, but it is this board who puts her in leadership, who decides leadership. And it is the majority of this board who is signed on to this

resolution, or I'm sorry, this BMI, to take her out of leadership because of concerns that go back.

[03:38:53] I guess the first concern goes back all the way to June 18th of 2021 and then going forward. I don't do this lightly. I don't do this. None of us, I think, do this lightly. None of us do this gleefully, chorefully. This is incredibly uncomfortable. I will also say I respect Ms.

[03:39:20] Bricksman's service, and I think that she has done some amazing things for people in the Algonquian district, and I've said that to her many times from this dais, but there just also get to be a point where some behaviors have to be addressed when someone's in board leadership.

[03:39:39] Ms. Brixman? Thank you, Chair Randall. Well, I can say that not one colleague has come to me with concerns or accusations that I have violated our code of conduct or our ethics pledge. I think this is a manufactured crisis that has nothing to do with board business. This has been a months-long pressure campaign, an attempt to force me to stand down from my stance against data centers, Dominion Energy, and to silence my criticism of policy, which has given big

[03:40:15] corporations a pass while our residents suffer the consequences. For nearly two years, I have led the county's finance, government operations, and economic development committee with integrity, diligence, and a clear focus on serving the public. I have helped advance two major budgets that fully funded our schools while constraining growth in our operating budget, lowering the tax burden on Loudoners and ensuring that revenue is responsibly invested in critical capital initiatives and projects and initiatives that make our county more livable and affordable.

[03:40:49] Throughout my two terms in office, I have championed efforts to reduce the cost of housing and child care and to make Loudon more equitable, diverse, and sustainable, all while strictly adhering to our code of conduct and our ethics pledge. I strongly push back that I have violated any point of our code of conduct. Let me be clear. This is wholly inappropriate. It is wholly inappropriate for elected officials to use the power of their offices or county resources or the people's time to intimidate those who disagree with them on matters of public policy. Loudoun

[03:41:27] residents know that I will stand up to bullies, no matter who they are, even the President of the United States. And tonight's action will not change that. I will continue fighting for the residents of Loudoun County, demanding accountability from big corporations, calling out the sheriff for his 287G agreement with ICE, and I will be continually speaking plainly about the policies that shape Loudoun's future. Again, I strongly disagree that I have violated our code of conduct in any way, shape, or form. It does appear that Chair Randall has secured the five votes to remove

[03:42:05] me from leadership tonight, so I will just say that I am grateful for the opportunity to have served as vice chair and finance chair for nearly two years, vice chair for one year, and I'm ready to move on and take on the next challenge. Thank you.

[03:42:20] Thank you. Would anyone else like to speak? Mr. Kirshner. Oh, Mr. Umstead. I'm sorry. Ms. Umstead. Thank you, Madam Chair. On May 7th, Chair Randall asked me to meet with her about Ms. Briskman. She discussed the fact that Julie had briefly put on her personal social media an anti-Trump song, A rap song that the L.A. Times has described as the most prophetic, wrathful, and unifying protest song of 2016.

[03:42:53] We also briefly discussed months-long rumors that Julie was debating a run for board chair. On May 19th, the board went into closed session regarding appointments, performance assignments, and

other actions pertaining to a member of the Board of Supervisors.

[03:43:10] The board did it again on June 16th. As I said then, this is a bad idea. Tonight's initiative to replace Julie as finance chair will be seen by some as belonging in the realm of politics, not in the realm of governance. No reason for replacement is given in the motion.

[03:43:29] So, did Julie violate the law or our rules of ethics? I have seen her conduct as finance chair and have observed no evidence of illegal activity or an ethical violation, but this motion itself will be seen by some as a violation of two of our rules of ethics, the rule requiring us to comply with all political campaign laws and the rule requiring us to be transparent.

[03:43:57] If it passes, it will hurt the board more than it will hurt Julie. has julie been a good finance chair yes under her the county has maintained its triple a status and she has been competent and courteous in that role as there is no legal ethical or performance reason to replace her i will be voting no thank you miss umstop mr kirstner thank you madam chair um i i agree with madam chair in terms of this is a bit uncomfortable i'm not a person i'll fight

[03:44:33] for what I believe, and removing somebody is not something I relish. I completely and utterly disagree with Supervisor Umstead. This is not political in any sort of way. Anybody up here serves not only at the pleasure of their constituents, because we get put here, and Ms. Brisbane has obviously is serving at the pleasure of her constituents, and there's an election every four years, and that's fine. But you're not entitled in any sort of way to a chair position so you in some ways serve at the pleasure of not only the chair but the vote of the majority here um i guess i'll just you know i'll i'll talk about the 2 000 pounder gorilla

[03:45:13] in in the room i mean the the i mean it's good and chair randall mentioned it goes all the way back to the point that miss brissman i'm literally on public social media called me kkk Okay. I overlooked that. I called her up. I asked her to remove it. She said, oh, it was just flippant. I don't find that flippant to call one of your colleagues someone who goes around murdering black people. And that kind of behavior continued. And so that's why I find Supervisor Umstead's statements just shocking, honestly, quite frankly, shocking. That we, when you serve

[03:45:51] at the pleasure of this board and you go around saying things and doing things that make, that, that are highly insulting to your colleagues, call it unethical or not, that we should continue to do that. And then various things, which I'm not going to mention, have happened throughout the years.

[03:46:08] And then, of course, the icing on the cake, which really kicked this all off, was the, what was mentioned, a song that, again, Ms. Umstead, I'm shocked, says, oh, it was the most prophetic song or whatever. It's a song that uses the N-word on a regular basis that she puts on her Facebook page and And it constantly says F Donald Trump and literally says it and uses the N word.

[03:46:30] And then she puts it up with pictures of our chair and other members of this board and doesn't find it to be that offensive. So that's just the bookends of everything else in the middle. So what I think is important for everyone to understand who may be listening to this, and I think Ms. Brisman understands because we've had these conversations, and I would have let this roll as well if there was a public comment that had been made by Supervisor Brisman.

[03:46:58] she has doubled down and she has decided for herself that this is not this is appropriate behavior I guess because I mean normally you just make a public apology you know I'm sorry about that I

wasn't thinking or whatever but the chair of the finance committee whoever we choose to put in represents this board and I think someone who is a little more sensitive to the public and their colleagues and makes better decisions should be put in that place and that's why I'm casting my vote for the motion. Thank you. Mr. Sains. Thank you madam

[03:47:34] chair. Yeah I wish we were not here doing this right now at all but I just wanted I was actually not going to say anything but had to feel that I correct something the comment was made by miss Brisbane that we're doing this because of her standing up to dominion voting no on data centers and whatnot that's not accurate at all that's not that's highly that's nowhere close to why the reason why we're doing this so for her to say that is a little um off-putting um but that's the furthest thing from the truth um we've all

[03:48:13] there's been all of us a little majority of us have voted yes for some data centers i mean there's Some of us have voted no for some data centers, minus one person who's been consistent with their vote on data centers. But that, again, is not the reason why we're doing this.

[03:48:31] And again, I wish we were not here doing this, but we have to at this point. And I'll just say also regarding the Finance Committee, we have a great staff that leads us and helps us in that committee.

[03:48:51] It gives us good guidance, and we all collaborate with them well and steer the ship. And I believe, and somebody correct me if I'm wrong, but we've had good, solid ratings for some time now with the agencies under various chairs of the Finance Committee.

[03:49:12] From my recent memory, it's been Supervisor Letourneau, Supervisor Umstead, yes, Supervisor Rissman, Bona, and whoever else. But that will, with the help of our staff, that will continue with our stellar performance in our finance committee and in our ratings.

[03:49:33] It's not just because of one person. It's because of a collective from our colleagues on the Board of Supervisors and the staff. And I have all confidence that will continue. So, again, I wish we were not here doing this.

[03:49:48] There's been several conversations, hard conversations, feelings shared and listening, offers extended out to prevent us from getting here.

[03:50:04] And I'll just say those were not met, and I'll leave it at that. Thank you. Mr. Crony? Yeah, thank you, Chair Randall. So I don't know what happened last term. I'm just looking at this term. And the video is what I'm turning to because that's all that I know.

[03:50:28] I don't think Supervisor Brisbane, there's been nothing this term that I would question regarding her ethics or her behavior. But I do know the video was inappropriate and insulting. And, you know, it was posted in June 2025 during a No Kings rally.

[03:50:50] Um, Supervisor Briscoe removed it shortly after, so she self-regulated and removed it. Um, the video was posted on her personal and campaign Facebook and Twitter, not on any county media.

[03:51:06] So that, that would have been a big difference for me. The, the apology, she did post an apology on personal and political social media pages. And, you know, it was captured by someone and sent to the board in 2026, almost a year later.

[03:51:27] So just looking at the facts of this, my conclusion is that it is not board business, that this is more political. And I can't support removing Supervisor Briskman from leadership for political reasons.

[03:51:48] I do believe that this does set a precedent to remove colleagues from board leadership for political reasons. The video is inappropriate, insulting, should never have been put up. I, you know, there's no excuse for that at all.

[03:52:08] But I don't think it merits removing Supervisor Brisbane from leadership, so I won't be supporting the motion tonight. Thank you, Mr. Crony. Ms. Glass. Thank you, Madam Chair. I would associate my comments with Supervisor Sainz.

[03:52:34] You know, I come from a place where using certain words, it gives the black community a reaction.

[03:52:56] You know, maybe not to the younger generation, but maybe yes, maybe no. But I feel that those who have gone through different things in their life to help the black community.

[03:53:20] I come from a family where we desegregated Prince William County schools. My sister heard the N-word all of the time. She had things pinned on her back.

[03:53:41] So it's not flippant for me. It's something that I do not use in my household, and I don't have my sons to use in the household.

[03:53:57] And I have a lot of friends that feel the same way that I do. This has been very difficult because I appreciate the work that Supervisor Briskman does for her community.

[03:54:25] But I think I, you know, for me, just to say this is political, we're supervisors. So that's who people see us as, supervisors.

[03:54:40] If I'm outside with a T-shirt and shorts, I'm still Supervisor Glass. So, like I said before, this has been a very difficult thing that, you know, I'm looking at what to do here.

[03:55:08] So, it's not something where, you know, I'm trying to take sides. That is not the case. But I think this is something that, you know, some of my colleagues are concerned about.

[03:55:31] Thank you. Thank you. Mr. Turner. Thank you, Madam Chair. I became aware a couple of months ago that Supervisor Breskman had posted a video clip on her personal social media page that was obscene, used the F word repeatedly, used the N-word, a word which I have not used a single time in my entire life, with my image associated with that video clip.

[03:56:00] I had no knowledge of that, I did not give my permission for that, and I was outraged that that would happen. To her credit, she sent me a personal note of apology, which I appreciated, but I have thought since the very beginning, a public apology from the dais and an assurance that it wouldn't happen again would have been the minimum that I probably would have accepted and just moved on.

[03:56:22] But now this comes on the heels. This was a straw that broke the camel's back for me. This comes on the heels of the letter sent out and vice chair letterhead supporting the Palestinian movement. Whether you support the Israeli side of that argument or the Palestinian side of that argument for Suvarez Bristman to send out on vice chair letterhead an overtly political statement like that clearly communicates to the public that she is speaking on behalf of the board, which she was not.

[03:56:49] Once again, a misrepresentation of my personal views. And then finally, I was in an event, I don't remember which one it was, but I turned around and saw her posing for a picture with demonstrators who were hanging Sheriff Mike Chapman in effigy. I think Sheriff Mike Chapman and I are

probably as far apart as you could possibly be on the political spectrum, but you don't, as a sitting member of Board of Supervisors leadership on this board publicly to have a picture taken hanging a duly elected constitutional officer

[03:57:23] of Loudoun County hung in effigy. You just don't do that. I think it's reprehensible as a supervisor. It is absolutely unacceptable as a member of leadership of the Board of Supervisors. And the most recent one with the obscene and racist video clip with my image on it was frankly the starlet that broke the camel's back. And I just felt it was time for her to be removed from board leadership thank you say mr mr turner's time i want to just make a clarification the effigy he wasn't it was he wasn't hanging it was the effigy but he wasn't hanging so i just want to say that i actually have a point of clarification the people

[03:58:01] that made that called it anyway i know what they called it it was okay whatever um anyway you done I remember it hanging. I was right there, and I remember it hanging.

[03:58:17] It wasn't hanging. It was huge, but it wasn't hanging. Okay, so I didn't secure anything, and Ms. Brixman, if your colleagues haven't come to talk to you, then that's maybe a discussion you have to have with yourself with why are your colleagues not willing to come talk to you about something because it's not, you know, they come talk to me and not you.

[03:58:35] It has nothing to do with me at all. So maybe that's a question for you to ask of yourself. On June 18, 2021, after serving with Mr. Kirsten for a year and a half on this board, Ms. Bricksman called him a KKK member. And when he asked for an apology, she gave a very, very tepid apology via email, so she didn't give the apology where she made the offense.

[03:58:57] In July of 23, she said something that was completely and totally untrue about one of our county staff members. That statement that she made about a county staff member was very hurtful for that county staff member, and she never corrected it and she never apologized for it on october 30th to 2025 yes she appeared with an effigy of soup of mike chapman when i told her about it she said to me the people said it was a puppet i sent her a definition of what an effigy is and she said well they said was a puppet so i will go with it's a puppet i know the difference between the effigy and elmo it was not a puppet

[03:59:33] it was an effigy during the budget process this year she made a motion to that would have if it had passed given every single county staff member a raise with the exception of the 824 members of the sheriff's department. Everybody else would have got a raise because of political issues. You do not use the county staff for political issues and withhold their money.

[04:00:00] Those are human beings. Their husbands and wives are working hard. They need their money. They deserve their raise, and to make a motion to do that because of her disagreement with Sherrod Chapman, it was absolutely bringing politics to this board.

[04:00:16] And then, of course, the video, which, by the way, she posted, and then she tells us how fast she took it down. We have no idea when she took it down, how long it was there. And we didn't find out about it because it wasn't like she came to us and said, "I posted this thing.

[04:00:32] I'm so sorry." came to me in an email that was sent to me a year later and I will show you the text with it that when it came I said she wouldn't have done this there's no way Miss Briggsman would have done this this is not who she is and then the next day we went out and I found out that she had done this and it has not only the n-word in it but it has a picture that I took and as soon as the n-word comes up

there is my picture in that in that video the moment the n-word hits and it's a picture that I took. It hasn't been one thing. It's been thing after thing after thing

[04:01:08] after thing after thing. And truthfully, accountability will always feel like an attack when one is not willing to accept responsibility. Leadership doesn't reject accountability. Leadership embraces accountability, and it grows through accountability. It feels like an attack because a person is not wanting to take responsibility.

[04:01:35] All right. I made the motion. Supervisor Glass seconded the motion. All in favor, please say aye. Aye. Opposed? Nay. Nay. That motion would pass. Five to three to one, with Mr. Letourneau being off the dais.

[04:01:53] All right. Let's go into the next item, guys. Let's see. Where are we here? DPZ, is that where we're at? that's the last thing we got going on here well dpz work plan is that number eight i think that's all we have say it again oh board comments okay board comments let's do board comments and disclosures cool cool cool um verse comments and disclosures let's go miss briggsman i go with

[04:02:25] you first i'm sorry i thought we were doing the dpz work plan no we're doing just work comments and disclosures uh i am going to have to oh hang on a second i might have it right here

[04:02:40] hang on hang on i had the dpz work plan up we're not doing we're doing board comments and disclosures miss brixman no i know i'm trying to find my board comments and disclosures because i was doing the

[04:03:18] i had the dpz work yeah appointments and confirmations administrative items i'll come back to you miss umstead yes ma'am i have one disclosure which is on july 10th i met with

[04:03:49] representatives of tech park at dulles at the meeting were tony calabrese and howe edo and that's all i have okay miss bricksman i'll come back to you uh sorry madam chair i i don't know why i can't find it in my notes um but i do need to do disclosure so if you could come back to me

[04:04:20] that would be great. Okay. Mr. Crony. Thank you, Chair Randall. On July 13th, my staff met with Novec about Demos substation. On July 13th, my staff attended pre-meetings from our various states and North Star East. On July 14th, I met with Dan Olds from R&D Baseball. On July 17th, my staff spoke with Anna Ritter about the Happy Paws application. So my board comments. For the past two years I have consistently advocated for increasing the personal property tax rate on

[04:04:55] data center computer equipment from its current 415 back to its long time rate of 420. But today I believe Loudon should go further and match Prince William County's rate of 450. Loudon does not need to subsidize an industry that has already chosen to locate here. We are home to the world's largest concentration of data centers, fiber infrastructure, and a highly skilled workforce.

[04:05:21] A modest increase from 415 to 450, about an 8.4% increase, is unlikely to change that. My priority is simple, use data center tax revenue to reduce the tax burden on our residents. We've made a good start by lowering the vehicle tax during the last two budget cycles.

[04:05:40] In tax year 2027, the vehicle tax rate will be 294. Dana Center computer equipment is projected to generate approximately \$879 million in FY27, while vehicle personal property tax revenue is only a fraction of that amount.

[04:05:59] My goal is to eliminate the vehicle personal property tax for Loudoun residents while continuing to accept state car tax relief. Any additional revenue beyond that should be invested in capital projects, parks, and open space acquisition, and mitigating the impacts of data centers through environmental monitoring and improved buffering.

[04:06:19] I remain committed to regulating data center development in a way that protects the environment and enhances residents' quality of life, while ensuring the industry delivers meaningful benefits to residents with tax relief. I also support negotiating a community benefit agreement that maximizes opportunities for the community to include significant tax relief.

[04:06:45] Thank you. Thank you, ma'am. Ms. Bricksman. Thank you. I found it. Okay, so by way of disclosures, on July 10th, I met with Tommy Roche and Molly Novotny of Curata Partners, Chris DeWitt of the Loudoun School of Advanced Studies. On July 13th, I met with Bill Junda on the Tuscarora Crossing Land Bay 4 project. On 7-13, I met with Howie Edayo and Antonio Calabrese of DLA Piper, David Falcone for the Tech Park at Dulles Substation. On July 14th,

[04:07:24] again, Molly Novotny of Curata Partners, they had a call with my staff on the Loudoun School for Advanced Studies application. July 15th, I had a call with Molly Novotny regarding the Loudoun School for Advanced Studies application. On July 16th, I had a meeting with Anna Ritter, Aaron Swishelm, the land lawyers, Marcel Utamber, and the co-owner with Happy Paws. Sorry, That was my staff on July 16th, not me.

[04:07:58] I just wanted to say I'm really excited that the on-demand transportation pilot project has begun in Eastern Loudoun. I am excited that the Leesburg pilot has been so successful and ridership on our fixed routes has actually gone up since the on-demand pilot began.

[04:08:15] Because I was personally worried that our on-demand, sorry, our fixed route buses would lose ridership that they've actually gained. And I know the community is excited about the on-demand in Eastern Loudoun. I have gotten some great positive feedback, especially from our seniors, who are very happy about the opportunity.

[04:08:36] By way of the Gun Violence Archive, as we mark the halfway point in 26, I'm discouraged to share that we've lost 7,215 lives to gun violence so far this year. And our nation has experienced 263 mass shootings. 478 of those deaths were ages 12 to 17, and 125 were children under the age of 11. Thank you.

[04:09:02] Thank you. Ms. Glass. Thank you madam chair. I have a few disclosures on Wednesday July 8th my staff met with representatives for the Loudon School for Advanced Studies application. July 8th my staff met with representatives for the Tuscarora Crossing Land Bay 4 application. July 10th my staff met with representatives for the Quantum Park Data Center application. Tuesday July 14th my staff met with representatives for the Happy Paws K-9 Special Exception application.

[04:09:36] I just want to give a shout-out to two of my sisters. One, Deborah, had a birthday yesterday, and my youngest sister, Mona, has a birthday today. So happy birthday, ladies. Okay.

[04:09:55] Mr. Kirshner. Thank you, Madam Chair. In terms of disclosure, my staff met with Christ Lutheran Church by their project on Woodley Drive. In terms of the news from Kentucky today, this week is a big week. It's a big week in the Kirshner household. And it's a big week for Catoctin and the rest of the county because the 90th annual Loudoun County Fair is taking place at the fairgrounds.

[04:10:18] And they started Tuesday and they will run through Saturday. I just literally came through there. My colleagues are sitting far away from me because I probably smell a little bit like the livestock that my kids have been showing all day. They were very successful both in their pig show and their sheep show and the goat show personally.

[04:10:35] And there were a lot of other kids who put a lot of work into their project. It was it's a great time but each day at the fair is a mix of livestock shows live music some unique events including the pig scramble tonight which my eight-year-old son caught one so now I'm raising more pigs to the winter as it looks like um bull riding on Thursday and the power wheel derby and chaos in the valley demolition derby on Saturday which is a ton of fun and if you ever wanted to watch cars smash into each other you should come and watch it it is a great event um there's vital fundraiser. This is a vital fundraiser for the fair board, which I was on for many years before

[04:11:10] I joined this board, and you guys sucked all my time, so I had to resign from the fair board. But they do a tremendous amount of work on all volunteers. And finally, this year's fair has a dedication to someone who has served the fair and 4-H program in an outstanding way. That information has just been updated on their webpage. This year's dedication goes to Dermot Harris. Dermot first got involved with the fair in 2013 when his daughter joined the Temple Hall non-ownership sheep club today he is one of the fair's most active volunteers Dermot can often be found at the fairgrounds mowing the grass making repairs maintaining the equipment and organizing

[04:11:47] projects long before and long after fair week as the fair's organizer put it he is quote he's the person who quietly shows up works hard and helps others along the way which I think as supervisors we can always take a tremendous, it's a tremendous example of being public servants, and that is to be the person who quietly shows up, works hard, and helps others along the way.

[04:12:11] So a shout out to the fair. Get out there if you can. Get there early if you're coming to the rodeo or the demolition derby. Don't show up at six, because I think last year we actually ran out of parking. It was so crowded, but boys are having a lot of fun, and can't wait to get home and get a shower.

[04:12:29] We can't wait for that for you either, Mr. Kersner. Mr. Sainz. Thank you. On July 13th, I spoke with Dominion Energy about Golden Substation application.

[04:12:47] Also met with them along with some school board members to do some micrositeing and had a meeting. On Wednesday, July 15th, I spoke with members of Walsh Colucci regarding the Dulles East application and their clients.

[04:13:03] I would like to take a moment to recognize the achievements of the Lower Loudoun Little League Major All-Stars. They made history as they played in their first ever Virginia State championship game yesterday.

[04:13:19] Unfortunately, they came up a little bit short in the championship game. but we want to give them a shout out and recognition for their their efforts this year in their in their season so a job well done to to the major all stars all stars for the lower loud and little league based in sterling virginia I'd like to again highlight my uh annual back to school drive uh that is that has been launched we have uh donation sites at the sterling library sterling community center at the dulles town center so any and we also have a online store

[04:13:54] with amazon um if you want more information please go visit my uh facebook page or sign up for our newsletter and you'll get the information um the drive goes from july 6 to september 14th um as i mentioned before there's a job fair uh coming up that would be taking place on If I can find the date here, July 29th, next week, Wednesday, from 10 a.m. to 1 o'clock p.m. at the Ashburn Rec Center.

[04:14:24] So if you're looking for a career switch, new opportunities, or just want to see what other job opportunities are out there, you know, family members or friends are looking for opportunities, make sure you send them to the job fair taking place next week, Wednesday, here in Loudoun County. The summer meals program with LCPS is continuing, and that ends on July 31st.

[04:14:46] So please make sure to share that information and take advantage to make sure you get your summer meals. And as mentioned before earlier, I'm definitely very excited about the transit on demand program now being rolled out in the Sterling area.

[04:15:03] Again, visit the Loudoun County website or Loudoun Transit to get more information. But we feel this is going to be a game changer. As we've seen, the data doesn't lie. It worked very well in Leesburg. Ridership is up on demand and on the regular Loudoun transit. so I feel this will be very successful in Sterling, so we'll continue to make sure we get the information out.

[04:15:21] I know one of our local papers shared the information as well, so we're very appreciative of that. And let's see. Oh, another good announcement from the budget from the Commonwealth of Virginia, and thank you to Delegate Atusa Reza for her efforts on this to help support a fund, put this budget amendment in the budget down in Richmond.

[04:15:48] She called and asked, is there any organizations, nonprofit within her district that we both represent in Sterling that we could put forward to see if we can get a budget amendment passed for funding? I submitted two, one being Women's Giving Back and the Sterling Foundation. Unfortunately, both weren't selected for the budget amendment, but the Sterling Foundation was.

[04:16:07] So they got \$25,000 via the Commonwealth, which will come to us, and then we'll give it to the Sterling Foundation. So, again, thank you, Delegate Atusa Reaser, and congratulations to the Sterling Foundation for the \$25,000. Thank you. Thank you. I think I got everybody right before I go, Mr. Turner. Mr. Turner. Thank you very much.

[04:16:27] By way of disclosures on July 9th, my staff and I spoke with Amanda Williams from Cooley to discuss the application for digital Dulles Western lands campus. On July 14th, my staff and I spoke with Kathleen from Dominion to discuss the Barrister and Aspen substation. And on July 14th, my staff and I spoke with Greg Mathis from Dominion to discuss the Aspen Golden substation.

[04:16:47] Down at the NACO annual meeting these past four or five days, I was appointed chair again of the Environment, Energy, and Land Use Committee, and our committee passed 24 resolutions. I sponsored, I co-sponsored two of those, three of those that have, several of them had direct bearing on Loudoun, but the three that stood out for me, there was a resolution to protect local control in the siting and regulation of data centers.

[04:17:12] There was a resolution opposing national interest electric transmission corridors for reasons that we talked about earlier tonight. And there was a resolution that to recommend that data centers bear the lion's share of the cost of infrastructure to support the data centers.

[04:17:31] I would like to say thank you to the contingent. I was running for NACO second vice president, which was a pretty intense process. It began last February. I did not win, but I was so proud of the entire Loudoun contention. I just want to say thank you to everybody that was down there.

[04:17:49] The board member staffs, we had staff representatives from four or five different board members that were down there. Mr. Hemstreet and Mr. Quintine and Ms. Vanderbilt were down there from county staff. And I was just very, very, very proud of how Loudoun pulled together as a team.

[04:18:11] I think we had a real impact, and it was very rewarding. I was very, very humbled by the support I got from county staff and from the supervisor staff that accompanied me. It was a very satisfying experience. I will relate one incident that really kind of put it all into perspective.

[04:18:28] One of the things you do is for two days, you go around and give two- and three-minute presentations to the various state caucuses, and so I'd give my presentation. One of the presentations I gave talked about how I make my decisions based on my core values and what my core values were. And I was walking through one of the hallways behind one of the meeting rooms, and it was right before the vote, and a NACO staff member came up.

[04:18:54] Now, they can't vote. They're not involved in the process. It was just a NACO staff member that supports all the NACO members. And he stopped me and he said, I just want to thank you. The few words that you said there were deeply inspiring, and I will keep them with me forever. They really meant a lot to me, and in a way changed my life, and I truly appreciate it.

[04:19:13] Even though I can't vote for you, I just wanted to know that. And in that one moment, I no longer had to wallow in my self-pity for not winning the election, and after all that, very, very hard work, and I was very gratified that a NACO staff member would go out of their way to say that.

[04:19:28] So once again, thank you to everybody. It was a humbling experience. It was a gratifying experience, and I'm very proud. I would not change a thing in what we did. We did great as a Loudon team. One disclosure, my staff met with Erin Swisholm on the practice, the nuclear substation.

[04:19:46] That was the only one I had. I do want to say four names tonight. I want to say the name Sergeant Angel Rempersand. She was 28 years old from New York, 28. I want to say the name Lieutenant Feeham, Lieutenant Tyler Feeham.

[04:20:04] He was 25 years old from Ira Beach, Hawaii. Sergeant Michael Emanuel Swinton, he was 30 years old from Fayette, North Carolina, and I'm missing one of the names. Hold on one second. Isabella Gonzalez, who was 19 years old. Those four people died recently. They were members of the United States military, they died in service to their country. There's always so much discussion about, should we

[04:20:42] be at war, should we not be at war? And, you know, I could have all my, you know, feelings about war and not war. That's, you know, but sometimes in the discussions about should we be at war and not be at war, we lose the fact that there are actual human beings over there who are fighting and dying. And, you know, what strikes me about the people whose who's who's who we have lost is one they're all young and two their names um miss gonzalez was 19

[04:21:15] years old um and for all the discussion of you know immigrants and and and and who belongs and who doesn't belong here this 19 year old young woman um who's who has not been maybe always respected by her country or her president died for this country, as did all the three others as well.

[04:21:42] It is vitally important that we remember the names of the fallen, say their names, say them with respect and say them with dignity, and separate the political discussion of gas prices and war and all those types of things from the fact that four families tonight and more, but four families tonight will receive the respectful remains of their loved ones.

[04:22:20] And I believe from every pulpit, from every dais, from every platform, we should say their names. and I will say that I'll be praying for those families and I hope that their memories will be a blessing to them.

[04:22:40] Thank you very much. Okay, let's do the last item until September. Mr. Kirshner, are you headed home? Mr. Kirshner is going to go home and bathe. We are grateful for that as well and sleep.

[04:22:57] All right, call you later, thanks. all right number um uh it's it's the dpz work plan and we are going to go through the dpz work plan and i think we have three or four motions on the dpz work plan that we we're going to be doing right now ready yes ma'am all right good evening madam chair members of the board i'm dan galindo the director of the department of planning and zoning and with me tonight is the deputy director judy burkett this month's uh this quarter's dpz work plan update is relatively stable there's only been a few dates that have moved around, which I will get to momentarily. The one item that we've

[04:23:35] been able to take off the work plan this quarter is the National Register nomination for Watson First Baptist Church. In June of this year, the church was approved by the Virginia Department of Historic Resources for designation as a Virginia Historic Landmark. A National Register of Historic Places nomination will occur at a regularly scheduled National Park Service meeting later this year. BDHR and our consultant held a final community meeting via Zoom on July 15th. And so while the National Register nomination is not fully complete, given the fact that it's become a state landmark, it's essentially a shoo-in. So we decided to take

[04:24:12] that off as our consultant's work is largely done. I'm sorry. I didn't hear the last thing you said because Mr. Turner was talking to me. Will you say it again, please? I just said that we, even though the National Register nomination process is not fully complete, we felt comfortable taking it off because given the fact that it became a state landmark, a historic landmark, it's essentially a shoe-in for that process.

[04:24:38] Okay. All right. All right. So moving on to the ZOAM work plan, the Data Center Standards and Locations Phase 2 project has still estimated for the same completion date of spring of next year. We have had DPZ representatives also working in support of the working group substations and other matters dealing with Dominion Energy.

[04:25:03] The members that have been part of that group have noted the overlap between the issues that we have been intending to address through this CPAM and ZOAM process and the topics that are currently being discussed at the working group and subgroup meetings. And there's definitely value in trying to carry the workgroup information over to the extent we can.

[04:25:22] But fully integrating that process into the CPAM and ZOAM process at this time would likely require extending the project schedule. So we are going to take what we can from it now. We are really trying to finish the drafts of the zoning amendments, comprehensive plan amendments within August, and then starting to go out to the public hopefully in September, likely ZOC in October, and then moving forward from there.

[04:25:48] That project is one of our two large and ongoing projects that we've really been tackling along with Western Loud and Rural Use and Standards. And it is similar to the Walrus project, one that is definitely facing some time pressures and trying to accomplish this and get it done on the schedule timeline that we've put forward before. There have been a lot of components added to that project over time, most of them a while back, but there's just a lot of individual pieces to check for individual topics to define, to work on regulations for, and so we are trying our best

[04:26:27] to work with our consultants to wrap all of that up within the next month, but I did want to put on your radar that that's going to be essentially a race from here until the end to try to meet that deadline. For the Western Loudoun Rules and Standards Project, as you know, the board created an ad hoc committee that is consisting of five members of ZOC and four members of the Planning Commission. Their first meeting has been scheduled for August 11th which is essentially an orientation meeting. We don't expect them to dive into any of the actual proposed amendments at that meeting but later in August will be their

[04:27:03] first meeting getting into the actual subject matter and working through verifying if staffs proposals that we've been developing since we were last at the board are fulfilling the intent of all of the board's various motions. So we are hoping that that work will be complete in November and then carry it forward to the commission and board as we most recently talked with you about at the joint board PC meeting at the end of last month. Our third item is the placard notice requirements zoan which is honestly

[04:27:34] a very simple one but we took it out of the zoning ordinance rewrite amendments project that had been sitting in third place for quite a while because this is the notice requirement where for a board initiated rezoning we would have to placard the property which makes sense if it's an individual property or two but it will be very difficult to fulfill and ensure that we can keep all of the placards up for the thousands of properties that we'll be dealing with when we do the floodplain overlay district amendments as well as the route 28 amendments for properties

[04:28:10] are still under the 1972 ordinance so we have been rushing that forward to get that hopefully complete just after y'all's break and then have that set up so that the other two projects which will shortly be following thereafter will not have to placard thousands of properties so that is at the planning commission's public hearing on tomorrow at this point so this wednesday tomorrow there are no specific updates on the floodplain overlay district project at the moment we are We are continuing to work through draft language and will be taking that language back to ZOC

[04:28:46] and the PRC committee before we move forward to the Planning Commission. For the zoning of certain properties under the 1972 ordinance, we have essentially come to agreement internally about the exact steps that we need to take in order to fulfill all of the components of that project, including the zoning map amendments and the text amendments within the CPAM and ZOAM portions.

[04:29:12] We are anticipating taking the draft amendments to the Commission's public hearing in October and hoping that board action will occur shortly into the new year. For our two current projects that we recently added to implement new state legislation, the Buy Right Affordable Housing by Religious Nonprofit Organizations work has kicked off.

[04:29:37] We are attempting to get all of that wrapped up and together for the Commission's September public hearing and hoping to have the board's public hearing no later than November 12th so that the

board can adopt it prior to, well, hopefully on the December 1st meeting so that it can be adopted prior to taking effect at the beginning of next year.

[04:29:56] Number seven, which is implementing the slate legislation regarding cannabis sales, as the board is probably well aware, there was the bill that was vetoed and we sort of thought as a staff that that was going to come off of our plate. It was then added back on during the budget process. so staff from the county attorney's office and DPZ has been going through and trying to attempt to see how what was passed with the budget is different than what was out there before so that we can move forward and make sure that we're actually implementing that appropriately. It has an effective date of July 1st and so we are fully anticipating having something before you prior to that becoming effective so that we can implement that and

[04:30:35] address any concerns that the board may have. Number eight is where I've moved the zoning ordinance rewrite project down. And I think it's worth pausing here for a minute to discuss our workload issues. So I actually had to go back and look and see how long we had had it as like the number three slot. And that project had been sitting there at number three for about two years now. And it's a project where we have worked on it off and on, picked it up, put it down, worked on a component of it, set it aside, came back up, picked it up, and worked on a few different

[04:31:08] things that one different from some of these others is a a combination of a lot of sort of independent and minute issues that we were trying to address at once but that it has sort of determined that that has been the level of our the limit of our capacity it seems to have always been that project and so I've moved that down here because it is still ongoing but I wanted to take the opportunity to highlight with the board that that's sort of an example of given all the various projects we have that are both on the work plan and other ongoing things that we are working through

[04:31:46] like the Alvarez and Marcel study and a number of the other things that I've added on to the work plan not as individual items but as notes for the board to see some of the other stuff that has been either approved during previous actions the board has taken on conference of plan amendments and other matters that there's a lot of ongoing stuff that's also not just on this work plan as detailed and complicated as it already is. So we're essentially operating at and really sometimes above capacity and we do not have really any ability to assume additional assignments right now.

[04:32:21] Given the many active projects we have, there are 13 of those that will require public hearings before the commission and board, although some of those are overlapping in joint projects where it's both a CPAM and a ZOAM. But right now we are scheduled essentially to have no less than 10 public hearings in front of the commission and then separately 10 public hearings from the board between now and next July for all the projects that are already ongoing and already part of this project so while we have been increasingly utilizing consultants and we have been increasingly trying to pull in others throughout the department to supplement the individual or sometimes double

[04:32:59] project managers that are listed on the uh the work plan itself we're also even if we could get more capacity are kind of maxing out at what we can reasonably do with you and the commission in this time frame as well. So any new projects or additions to existing projects will really negatively impact our ability to meet the deadlines here. And I can tell you from just personal knowledge meeting with individual project managers and some of the teams over the past week or so, essentially all of almost all the projects we have are already on expedited

[04:33:34] timelines and there's already well I'll just say the stress amongst the project managers of trying to hit the deadlines that we have laid out here so if you call me and ask if we can do certain things my answer is likely to be no and hope that you can bear with us as we try to get some of these things off of our plate hint hint colleagues hint hint hint hint that wasn't even a hint that was a hint. Enough already. That was pretty direct. You're right, Ms. Jim Street. And okay, guys, are we hearing this? They cannot do any, they have no more, they can't do any

[04:34:14] more. So, you're done? With the ZOAM work plan, but I still have a few more slides to go through. So, the ones on this table are all of those that we have not yet officially started, but have been placed on the work plan. And if you did note within the item, Starting on page 12, I added sections for ongoing and future projects both under zoning and later under the community planning initiatives. Just to highlight some of the work that we know is out there that we will need to address even if it's not formally on the work plan yet, including responding to Supervisor Briskman's BMI regarding the George Washington campus,

[04:34:53] the potential for data centers, how big they can be, how, how much, excuse me, how much, Volume's not the right word. It's the word I'm looking for. Square footage or height and things of that nature. So that is one thing we're working on. We anticipate bringing a response back in September. I also had a conversation with Supervisor Tacroni and her staff regarding some of the work in the St. Louis village plan that was adopted that will require ZOAM to implement. Right now we are not in favor of trying to do 16 individual ZOAMs for each individual village nor having 16 individual districts.

[04:35:31] We did a lot of work going through the zoning warrantry right to try to combine and simplify the ordinance. And I think that's kind of working counter to that. Our hope is that after we work through at least a handful of the individual village plans that we will start to see some commonalities of issues that need to be addressed and different ways that we can try to combine some of those different issues into one ZOAM that will work across villages.

[04:35:58] That's purely a hope. I do not know if it will work out that way and we may come back to you with 16 individual districts or other ZOAMPs. But right now, that is the way that we are oriented and shooting for, and so I wanted to put that out in front of the board as well.

[04:36:14] Last but not least, in this section, and the one that's the most unknown to me right in this moment, is that in addition to Projects 7 and 8, which are implementing new state code changes, Staff has identified 23 bills approved during the General Assembly's most recent session addressing various zoning topics that could require a ZOAM to address.

[04:36:35] Now, some of those are ultimately going to be bills where they are allowing us to do certain things. They're not requiring it, but there are some that are going to be requirements that we will have to address and bring into the zoning ordinance. So we are still assessing that and likely at our next work plan update, we'll have an update for you on which specific ones we will need to address.

[04:36:57] Okay. Under planning initiatives, we talked about data centers, Western Loudoun. For the electrical infrastructure CPAM, as Mr. Giglio indicated earlier, we are working towards having all of our information together for board check-in in November, and then following that with the public outreach and possible planning commission hearings in the spring of next year. So that is ongoing too. We also recently incorporated the high voltage direct current transmission infrastructure study into that work as well. So, we are working through all of that.

[04:37:32] For the countywide transportation plan review, phase one of it at least, we did recently do our initial public outreach, including a community meeting over at the Douglas School on June 24th. And we are now working through making any, I think at this point, honestly very brief amendments to those documents and then sending them out for internal review and trying to get to a presentation in front of the planning commission in the fall.

[04:37:59] The last thing I'll highlight here are the village plans. Myself, Mr. Randall Farron and a few other staff met with members of the Loudon Historic Village Alliance two weeks ago I think at this point to discuss our plans for the village plans overall, the process we are hoping to implement, and in particular some initial outreach that we are attempting to do with one of our consultants for the three villages that have been identified as the first priorities.

[04:38:30] That work, that initial outreach would not be to officially kick off the work plans necessarily, it would be to work with them, inform them of what a village plan is, what it can and can't do, and also hear from those three individual communities what kinds of things they are currently worried about, what things they might like to see in the plan, and try to just get everybody kind of on the same page before we would kick it off later this year in the fall when we are hoping to bring project plans back to you for that work.

[04:38:57] So I did hear, even though I wasn't in the room, I did hear all the speakers earlier. I think every single one of them were in the room that we met with a couple of weeks ago. So we do have open communication with the Alliance and are trying to move forward on that as best we can given the workload we're currently under.

[04:39:15] Dan, just a point of clarification. So what you have in here is estimated completion. And so the to be determined is a completion date, not a discussion date or a start date.

[04:39:31] Do you think that it might be more helpful if you, because there's no way to know when the completion is going to be. So I understand what they're saying. Do you think it might be more helpful if you changed that or had even another row there that said it's underway?

[04:39:47] Because this just, I mean, because people looking at that may not know that it's actually even underway. So yes and no. Because in my mind, just because the way I try to do this, I wouldn't say it's officially underway yet because we have not put the project plans in front of you for your approval of what should be in those documents.

[04:40:08] That's usually where I define as something is formally kicked off because the board has authorized it and they've sort of set the boundaries of what that should be. Within the narrative under that item, it does talk a bit about this. And like I said, for all the speakers earlier, we did meet with them individually.

[04:40:24] So I would just say regardless of kind of how they phrase some of their comments, they are all aware of our current plans and that we do intend to meet with the three villages up front this fall, come back to you. So they are aware of that portion of it. Okay.

[04:40:39] But I am always open to, if you all think there are better ways to present all of this information in the work plan, send me an email. I'm happy to consider it and think about it because I know that this is increasingly getting very wordy um as far as the item goes okay and the other items on the honest work initiatives are not yet ongoing we do have two other national register nominations ongoing for

howardsville and st louis the st louis we estimate the completion moving back a month which pushed it into the next

[04:41:16] quarter so that date is a little different than what was in the previous work plan update and then And then the board also authorized staff to work on historic district guidelines for unison given that the community submitted its proposal for historic overlay district that we're treating as a legy.

[04:41:36] We are just now getting started with that work, but we do anticipate being able to complete it by the end of the year and hopefully have it ready in concert with the board's review of and potential approval of that legy whenever the time comes.

[04:41:55] with that I am happy to answer any questions. Okay so we have again like like three motions on the days at least but I do think that we need to do questions before we get to the motions. Now this is going to probably take another hour to get through this but that's going to do questions right now.

[04:42:11] Ms. Bricksman? Thank you and thank you Mr. Galindo. I'll just say if you can think of any way to I don't want to say be more efficient because I'm sure you're being as efficient as you can but what's the term i'm looking for if you can think of any way that we can help ease the load lighten the load um you know i know that you're trying to fill some vacancies if there's any way that consultants can help and i know that involves managing consultants but if you can think of anything please let us know um i can think of a way Could you think of a way?

[04:42:52] Pardon me? Go on. Okay, I'm just hearing a lot of laughing. I don't know what people are laughing about. But anyway, could you go back to the slide, please, where you were talking about the Route 28 tax district, Roya?

[04:43:11] So it's in two places, but here's where I was talking about the Roya. So it's number five. There we go. It's number five. Oh, why did I think it was number three somewhere? It is number three, I think, under the CPAM.

[04:43:27] Actually, that's not true. It's five on both. Never mind. I think it used to be number three on a previous one. Okay. I think we're tracking fairly well on that, and I really appreciate it. I know that was kind of something that came out of, I won't say the blue, but sort of quickly for you because of what happened at GW.

[04:43:46] But I may need to, this question may be something more appropriate for the county attorney. But I wanted to ask, actually, the county attorney, with the process as it stands now, looks like winter 27, when does the stay for the 1972 zoning ordinance in the Route 28 tax district kind of go away or effectively expire, in your opinion?

[04:44:14] The last payment that is due from the property owners in the Route 28 district is December 5th, and that is the date we're taking as when the stay on their 1972 zoning ordinance protections would go away.

[04:44:33] Okay, okay. All right, thank you. I appreciate that. I don't have further questions, and I will save more comments for my motion. Thank you. Mrs. Ains, aren't you the current chair of the Route 28 Tax District, or the current vice chair? Yes.

[04:44:50] Okay, so you actually know when. That was going to be one of my questions. Okay, okay, cool. Then I will go to you next, sir. Thank you, Madam Chair. Yeah, just to correct, this did not come about

because of GW Parkway. This is because, as Mr. Rogers just mentioned, the Route 28 Tax District is coming to an end.

[04:45:05] We did a motion, I brought a motion forward to start the process to dissolve the Route 28 Tax District, and that is how this got on the work plan. but Mr. Galindo, just in your comments earlier, you said we're going to be looking at this in October of 26, and then I thought from our conversations and when we did the presentation at the Route 28 Tax District meeting in March, we were going to start the process in 2027, which is what, I guess, that's the winter?

[04:45:35] Well, I guess, well, winter for me, I'm thinking winter is, what's our definition for winter? Winter is first quarter. Okay, okay, so that is correct. I'm thinking in my head, I'm thinking winter is like October, November, December, but okay, so this is right on the list, but that's how this came about because as Mr. Rogers mentioned, we are pretty much almost paid all of the debt for the Route 28 task district so we can get rid of this district that was set up, what, in 19, what year?

[04:46:10] 1988 I was still in elementary school at the time so this has been around for a very very long time. It served its purpose and got a lot of things done in the Route 28 corridor for development and improvements but it's time to sunset this thing and this is a burden for the Sterling District regarding a lot of zoning areas so I'm glad to see this come about and can't wait for it to be dissolved but it looks like again to clarify we're going to be moving forward in october of 26 hopefully be making a vote um in the winter which is january february march of

[04:46:50] 2027 to dissolve and be done with the 28 tax district and everything that unfortunately comes with it all right thank you thank you sir mr um stop uh thank you madam chair so one of the gentleman who spoke, expressed a certain sense of urgency about, I think it was water quality.

[04:47:13] And because of that, he hoped that his small, his village area plan would be done quickly. I have a feeling that that kind of problem is not going to be solved by a small area planned quickly, maybe over a few years. What do you recommend we do if there's a well contamination, a widespread well contamination situation out there? Should we be trucking

[04:47:52] in water? Do you have any thoughts on how to deal with that kind of request and how explain the length of this process to someone who feels urgency. So you are absolutely right I don't think a small area plan process is the right vehicle to try to address that in any sort of quick way. I don't know that I'm the best person to speak to that other than to say if it's truly an emergency situation I do believe there are essentially emergency powers that the county could avail itself of outside of planning and zoning related issues where we would

[04:48:29] have the uh the potential to do other things potentially like trucking and water or expediting some some work on the ground there um but beyond that i would hesitate to say anything in any more detail okay thanks uh mr crony you're good no i just want to wait to a motion or what are you doing um i just had a quick question okay um yeah uh so um we had a bunch of speakers here on the small area plan. Sorry to bring that back, but we did. It sounds like we have a consultant,

[04:49:06] right? And the consultant's going to go out to the community in the fall to start the process. Is that correct? Yes. I think that'll probably largely be a staff-led effort with them just helping us along the way and also kind of introducing them to the community to start with. But our hope is that when we

actually kick off the project formally with the project plans, That they will be leading those efforts. So when are we getting the project plans?

[04:49:30] So we're anticipating bringing that to you in the fall. So it's September is when we were hoping to go out to three communities So potentially as early as October, maybe November, we'd be about the time we'd bring the project plans to you. Okay, and then I have a motion for st. Louis, but You mentioned that maybe we could do the zoeum with the other three villages, so before once they're done right because we're doing those three luckets peony and springs and willisville correct so what i'd like to do is once we have those three done in addition to st louis is look

[04:50:07] at all of them combined and see where there's overlap and where there are things that we could try to tackle that would address issues across the board because the last thing i'd want to do is create a district that we then keep trying to modify as we do more villages i don't think that's good zoning practice. But yes, looking at once we have four completed, trying to take a look holistically at those and seeing what we think is appropriate is my intention. But that probably wouldn't be until like 28, right? 28 or? Yeah, 28 would probably be a good estimate. Okay. Thank you. Mr. Turner. Thank you, Madam Chair. How many open slots do you have right now on DPC?

[04:50:46] We have six plus five new positions with the new fiscal year, so 11. But of the six, two were for retirements, two were from promotions within. So we've actually made really good progress in the past year filling all of our vacancies.

[04:51:02] This is a basic question that you may not want to answer. Mr. Amstreet might want to answer it. If we just threw a whole bunch of money at those positions, could we fill them? I think we've been lucky that we can fill them where we are.

[04:51:18] I don't know that we've had any particular issues with the ones that are outstanding where they've been open for an extended period of time. It's just been the general churn of filling them whenever they've opened up. And we do have, I think, one, the training position still from last budget year that we are working on now, hopefully that will go out any day now.

[04:51:41] But we needed to work with HR because our goals for that were, I think, a bit unique for what the organization has done otherwise up to this point. Along the lines of throwing money at the problem. Madam Chair, if I may, I want to go back to something that Mr. Galindo emphasized early on in his comments.

[04:52:00] At this point in this term, the work plan issues are not staff or consultant oriented. all of these items have to come through a public hearing process in the Planning Commission as well as with the Board of Supervisors. The issue here with completing many of these has to do with the public schedule and the finite number of meetings that the Planning Commission and the Board has available to you to complete these things between now and the end of the term. And so I just want to emphasize that. I mean, we can throw money at the problem, but the issue is not the staffing.

[04:52:39] at this point it's you have a finite number of meetings to complete what's on the work plan you did say that before thanks for reminding me that's good um lastly um miss burkett i have your i survived walrus t-shirt in my car you're not allowed to leave tonight until i give it to you sounds good thank you actually i need to speak to you before you leave tonight too so um i want to go back to the to the oh i'm

sorry you finished i don't go back to the small village area plans discussions because I do, this is going to say, this could say DPBD to be determined for a long time.

[04:53:17] And I do think that the way this is written and the way this is here, it doesn't actually reflect how much work staff is doing, right? It doesn't reflect the pre-work you do and all the things you do before you, it doesn't reflect that.

[04:53:33] And so somebody or wonderful constituents who are coming in and saying it's been two years or it's been three years and nothing's happened. It's not true that nothing's happened because they're looking at a date. They're looking at a completion date on here. And so it might be, oh, I don't, let me give this, let me give thought on how maybe it's better to present it in a way that people know just the interim processes that's happening and what's happening all along.

[04:54:02] Because anyone looking at this, and I think I heard three people tonight say, how long is it going to say to be determined? And I understand that question if they think that nothing's happening. But some ground laying things are happening and there will be more things happening before that TBD ever changes.

[04:54:29] So let me just kind of noodle on how this could be better presented because I can understand people's frustration if they think nothing's happening. And that's actually not the fact. That's the first thing. So let me just think about over the next couple of weeks how maybe that we can be presented better so it reflects what staff is actually doing, which is a whole lot, to be honest.

[04:54:53] Secondly, on the small area work plans, I don't remember, did you all have one of the first three? Was Peony and Springs one of them? Yes, it is. Okay. All right. And then the discussion that Mr. Crony and I have had before for the work plan was a discussion about the consultant.

[04:55:15] Understanding and knowing that a consultant still has to be managed by staff. And so it's not like, you know, consultant, you hire them and they're just out there doing their own thing. There's so much to do, and these small area plans take a long time per plan. We know St. Louis was kind of the pilot, and for obvious reasons, I don't think they're all going to take as long as St. Louis took.

[04:55:37] I mean, St. Louis hadn't been, I mean, just nothing had happened there for a long time. But I think that's the other discussion we can have is, you know, how to, what else to do. You know, should it be in consultant? How to do this? And so that, you know, I don't remember how many villages we have, but it's going to be a lot for staff to try to get all of this done.

[04:55:59] And so a discussion about a consultant maybe is, you know, not the worst discussion to have at this point. We have, what, less than 18 months left in this term. And so we do have to get something done in this term, you know.

[04:56:15] So, okay. I will go, let's go to motions that are, well. hold on just a second yeah I'll go to the motions on the dais because depending on what passes and doesn't pass in the final motion I will say the final motion including any motions that just passed on the dais is how I'll do that so let's first go to Ms. Brixman do you have a motion for the DPZ work plan Ms. Brixman I'm sorry I do thank you Madam Chair can you hear me we can hear you okay great I move that the Board of Supervisors direct the county administrator to have the appropriate

[04:56:54] staff prepare an item for the September 15th business meeting agenda to cease processing data center applications, administrative or legislative data center site plans and any substation applications until such time as phase two data center standards and location is completed.

[04:57:12] I further move that the processing of such applications shall not resume until such action is approved by the Board of Supervisors. motions made and seconded by supervisor to crony i'll let you do your opening miss brixman i'm going to go to mr rogers for a question would you like to do your opening sure um so you know we've sort of touched on this on and off um as the community has been um getting more and more upset about the number of data centers we have in the county um i've heard from residents across the

[04:57:48] the county that they want data center growth significantly constrained or stopped entirely. They are tired of the visual impacts, the noise impacts. They're concerned about the continued expansion of the energy infrastructure, rising utility costs, and they're actually starting to be worried about the air that they breathe. So this motion does not immediately enact a data center moratorium tonight. It directs county staff to prepare an item for September. And I will say that Loudoun County would not be the first jurisdiction in the state of Virginia

[04:58:25] to initiate a temporary pause on data centers. Fluvanna County approved such a pause in September 2025 that lasted through January 2026, while their county staff reviewed and prepared updated zoning regulations for data centers. Suffolk City Council has been considering one, as well as the Front Royal Town Council enacted a pause actually last month. So I think it's time that we just press pause as we're finishing up the data center standards and locations for phase two.

[04:58:59] It's what the community has been kind of begging us to do, and it's going to give us the opportunity to conduct our due diligence and establish appropriate policies and regulations and standards so that we can do better to protect our communities and our natural resources. Thank you.

[04:59:15] Mr. Rogers, fully associating myself with everything Ms. Bricksman has said, I do want to ask you about the legality of this. I mean, I guess if it's just a question of can you go check the legality, but you have said to us more than once that this type of thing is not legal to do.

[04:59:40] Do you have an opinion on this? I've checked with some of the localities referenced. Frederick was the one that came first, and I have what they're doing. They're really looking at data center development in terms of how they're going to regulate it from a special exception standpoint and having a new zoning district for it.

[05:00:01] I'm not aware of what's happening in either Suffolk or Flubana or on what they're relying. I do know that they don't have a lot of data centers, and we do. Moratoriums in Virginia are discouraged. They are prohibited, rather.

[05:00:17] It's greatly discouraged to have a moratorium. You have to have a specific reason for doing so. As I think has been mentioned here several times tonight, this is a Dillon rule state, and the Dillon rule says you have to have that authority from the General Assembly to move forward. So as you indicated, I believe we can come back in September with the memo indicating what others are doing and our opinion as to whether or not we can do anything that's in here.

[05:00:44] One of the things that I hear as a stay often is that legislative applications for which the board or the governing body has a year to act on an application, you could pause that application while it's

pending, but that's about the best you could do. I cannot see how you can pause administrative applications, as there's a process in the code, should it take too long.

[05:01:11] There is deadlines for administrative applications, and I don't believe that we're going to be able to do that. Okay. I want to just have a point of clarification, because I may have misunderstood you, but I think I heard you say two things. I've heard you say both the words prohibited and the word discourage, which are two different words. Can you clarify what you're actually saying?

[05:01:31] The Supreme Court of Virginia has identified that moratoriums are not legal in Virginia. There was one case where there was, I hate to use the word moratorium, they delayed the number of building permits to be issued because there just wasn't enough water. And they had a solution to their water problem. This was coming out of Virginia Beach and the Lake Gaston Pipeline.

[05:01:54] And that very temporary stay was allowed, but it was a crisis for which a solution was readily available. I understand. Okay. Thank you. Anybody else? Ms. Umstead. Thank you, Madam Chair, and thank you for asking the same question I would have asked.

[05:02:11] I think it would be helpful for the county attorney to remind us again of prohibitions on moratoriums in Virginia.

[05:02:28] I will not support this particular motion tonight, as I suspect we would have a hard time defending it in court if it got that far. but i i think legal advices would be beneficial to the board thank you miss uh the crony yeah thank you chair randall so i do support taking a pause um i'm going to call it a pause uh until

[05:03:00] you know we have the updated standards uh of phase two completed and also a um plan for our electrical infrastructure. Loudoun's electric grid and community is at a breaking point, and I think we do need to pause all approvals, including administrative and planning district date, and demand transparency and a plan to protect the public from the impacts of unconstrained data center growth. I think a pause, it could be legal if we tie it to something like the

[05:03:39] like a phase two data center standards or an electrical infrastructure plan, which we're working on. I want to make it clear we have not, you know, completed such a plan. And I believe our residents are suffering because, you know, we have not been able to catch up, frankly.

[05:04:01] And I think we can do better to protect the quality of life of our residents. Loudoun is oversaturated with data center development, and I think we do need to take a pause. This is like the one county in the state of Virginia that needs this pause. So I look forward to the letter, but I'm not willing to give up on this, and I will be voting yes.

[05:04:22] Thank you. Ms. Glass. Thank you, Madam Chair. A question to Mr. Rogers? Sure. you had mentioned question all right so I mean I I find this you know something that I would like for us to have but how would if we're able to do a pause how

[05:04:59] would it affect applications that are in in process if we weren't able to do something like this I don't believe we'll be able to do a pause on administrative applications as the state code specifies deadlines that staff has to meet in its review of administrative applications. With regard to legislative applications, they have to work their way through the Planning Commission before they get to the board, and then the board has one year in which to act on it. So I do see an opportunity there in that one-year period should

[05:05:35] the board not act on legislative applications before an applicant could take the county to court. Okay, and you said—you said that there was a county that had, like, a specific issue, and that was the reason why they were able to take a pause.

[05:05:54] I think it was Norfolk or somewhere in the Tidewater area. It was the city of Virginia Beach. They were constructing the Lake Gaston Pipeline to help with their water supply, and they limited the number of building permits that could be issued, and that was upheld.

[05:06:10] But there were two things to that. one day were in a crisis. The crisis was identifiable, and the solution was on the horizon. Okay, if I could ask Supervisor Briskman. Sure, of course. What are we trying to do here, Supervisor Briskman? I mean, from what Mr. Rogers said.

[05:06:40] Are you done with your question? Yes, yes. Okay. The idea is to pause processing applications and site plans so that we can finish our data center standards and locations, phase two, and make sure that we finish all of those before any more data center applications come through.

[05:07:13] Are you looking to see if we can legally do this? i'm i'm looking to test the waters i'm actually looking to test the waters because i think that it could be argued that we are in a crisis on many levels thank you madam you're welcome uh mr saynes well thank you madam chair um yeah i can support forward and directing staff to do the research and come back in september i'm actually at a friendly uh if i'm if ms briskman

[05:07:48] will accept if we can, I guess, improve the language to say direct staff or county attorney and his staff to research or connect with the said counties and localities. So I think it was Frederick, there was Suffolk, did I hear Hanover or something?

[05:08:06] But if you can say the list of localities, add those in for staff to reach out to them to clarify and make sure we're getting all the exact information from them, not just reading news articles. Sure.

[05:08:23] Okay. And then, you know, just, you know, for the record, because, you know, we have discussed this before, that's not a new idea about pausing data centers, doing moratorium to that effect. So we've heard this guidance before from Mr. Rogers that we could not because it's forbidden in the Commonwealth.

[05:08:40] So we all were able to submit ideas in our legislative program to staff earlier in July. actually one of the items that I submitted was with the guidance that we've heard before I put in there for us to go to the general assembly and acts you know for local authority for whatever localities want to do it and make it a local option to do a moratorium so I already submitted that in my package for us to to discuss in our legislative program because I thought from the guidance I received a few times before that would be the most appropriate route to to do so so um but I'm willing to have staff go and do the homework and come back and see what they

[05:09:16] present to us on the 15th but so just giving you that heads up. I also also reintroduced as we've done I've done a few times before Supervisor Turner and Chair Randall as in last year I put in the programming again the legislative program to ask for authority to discuss energy and power when we're discussing the data centers and you all saw the email that I sent asking for the Attorney General's opinion regarding power and energy and et cetera so so we'll see how those how those all things shake out so thank you thank you and thank you for accepting the friendly thank

[05:09:49] you mr turner um uh i'm sorry um can i ask supervisor sayings question supervisor sayings yes it's not in a nutshell what was it not his motion supervisor sayings oh okay oh the friendly was to include in supervisor brisman's comment she listed a few localities that she said have done or she believes have done quote-unquote pauses or whatever so I'm add those into the motion to say direct staff to reach out to those to get clarifying it to have those conversations with okay but to be clear the motion as it's written right now is not for the staff to report back to

[05:10:28] us on the legality of doing this it's directing staff to do this oh that's not how I read the motion that's exactly what it says it says direct staff to come back with an item to cease operations until the zoning ordinance phase two is completed. Oh, I missed that. I'm sorry. So what I'm suggesting as a friendly is direct staff to have the appropriate staff examine the feasibility and report back at the September 15 meeting agenda of the feasibility of ceasing processing data center applications.

[05:11:01] You mean the legality? Yes. Okay. I would like, because it sounds to me like there's some question whether the motion as currently proposed is legal. So, what I'd like to do is get an actual, have staff look at it and say, is there wording that we can use that would make this legal? The second issue, though— Wait, wait, wait. Is that a friendly?

[05:11:18] It's a friendly. Ms. Crispin, will you take that friendly? No, I think that that—I will not take that as a friendly. Okay, well, then you have to make an alternate motion. Okay, so the motion that stands right now is directing staff to do something that may be illegal. Okay, would you— No, it's not. It is not doing that. Okay, but Ms. Crispin, you're not—this is not your time right now. You answered the question.

[05:11:36] That's the first thing. The second thing is, if we establish the moratorium and don't process any applications until the second phase of zoning ordinance is approved, and then we finalize the second phase of the zoning ordinance, and we start reviewing data centers again, all data centers right now require specs anyway.

[05:11:58] So all data centers are going to come to us for a decision. So, okay, we can establish a moratorium until we write the zoning ordinance, but as it stands right now, as effective right now, all data centers have to come to us for permission. So we're going to see them anyway.

[05:12:15] So I like the sentiment. I'm all for it. Number one, I think we're directing the staff to do something that we don't have a clear opinion from the county attorney on. And number two, I'm not sure—we're going to see all data center applications effective right now anyway.

[05:12:33] Madam Chair, point of clarification, please. Okay, yes. I think that when it says direct the county administrator to have the appropriate staff prepare an item, that includes a review by our county attorney.

[05:12:52] That's not a point of clarification, Ms. Briggsman, but just hold on a second and I'll ask you a question so you can answer. But the point of clarification is when you need something clarified, not when you believe somebody else needs something clarified. But if Mr. Turner is finished, are you finished?

[05:13:11] Okay. So I did miss that. I actually thought this was a motion asking the county attorney to go find out if we could do, if we could pause it until all these things were put in place.

[05:13:28] And so I, Mr. Turner, as he reads it, that's how I read it. Let me ask Mr. Rogers, how do you read this? Madam Chair, with this motion, I would come back to the board with an opinion as to whether or not

you could legally do this before the board acted.

[05:13:45] Okay. So even with the motion as written, you will have my legal opinion. So, okay, so you will take this as going out and getting an opinion if we can legally do this or not. That's how you read this, and that's how you would take this.

[05:14:02] I would work on this with administration and planning and zoning, but you will have a legal opinion. You have a legal opinion. Okay, then that's— That's what I assumed you would do anyway. I can live with that, too, as long as that's how you read it. I mean, you know, listen, let me just first say, it's interesting for people to talk about how much they voted against data centers who've been on the board for, you know, a year and a half.

[05:14:26] I've been voting against data centers before it was popular to vote against data centers. I've been voting against data centers since I've been on this board in 2016. I let the pitch battle to vote against True North in my first term. There's no data center right now across the street from One Loudon where the Silver Diner is because I called the developer and begged him not to do that, and they're doing housing there instead.

[05:14:51] So I don't know that there's anyone from the time they hit this dais who's been fighting against data centers more than I have. I led the effort with Ron Meyer to put design centers on the data centers. So I'm glad people have joined me in this effort, very glad. But let's be real clear, I've been doing this since I've been on this board.

[05:15:11] It's easy to, Monday morning quarterback, if you've been here with respect, Mr. Crony, for a year and a half, but you were my aide. You were actually, two years, two and a half years, you were my aide. You know what I was doing against data centers at that time. In fact, you were helping me pull legislation left and right. We fought together against True North and other data centers as well.

[05:15:34] So my voting against data centers is not new. My asking for information is not new. And just like Mr. Sains, without even talking to him, all the legislation he said he put into this legislative package, I have put in there as well.

[05:15:50] At the same time, we do have a county attorney, and I do look for him for legal advice, and I am not an attorney, so I can't say, well, I don't think that's legal. I didn't go to law school, and I'm not going to use my Google law degree to do anything.

[05:16:07] I have a county attorney for a reason, and that's who I'm going to listen to. So I like that we can get an opinion, and I look forward for an opinion coming back at the September 15th meeting. Ms. Bricksman? Thank you, and thank you for the clarification, Mr. Rogers.

[05:16:26] I appreciate it. I appreciate all the efforts, and I agree with Supervisor Sainz that, you know, multiple paths. We've got to take every path we can at this point. As I said, other jurisdictions have leaned on the fact that they are working on regulations and ordinances for such development.

[05:16:43] to pause processing of applications and even acceptance of applications, I think it's time to pause, take back control, and allow the data center standards and locations phase two to be complete.

[05:17:03] After watching what some other jurisdictions have done, and I'm happy to provide my research to the county attorney, although he's very capable of finding out the jurisdictions that have done it, but I found Fluvanna, Suffolk City Council, and Front Royal Town Council, and there's probably a couple others

out there. I just want to have the discussion, and I'm honestly ready to test the waters. I think that there are many folks that could argue,

[05:17:39] and I don't know if it will hold up in a court of law, but our community thinks we're in a crisis. and um and we have questions about our water supply or air quality and energy issues so i think it's i appreciate my colleagues support on this um and i look forward to the september 15th item coming back to the board thank you all right mr mr mr makes the motion with mr crony second motion for friendly from mr sayings to look into all the places that have been mentioned that have some type of stay or pause or mr mr rogers did not want to use the word moratorium because

[05:18:16] reasons. So all in favor, please say aye. Aye. Opposed? Aye. That motion will pass. I think that's 6-1-2 with Ms. Umstead voting against the motion. Mr. Letourneau and Mr. Kirsten being off the desk. Let's go over to Mr. Crony's motions. Okay. So I'm going to start with number one. I move that the Board of Supervisors direct staff to return to a future board meeting with the results of a study into potential options for decommissioning any data centers that

[05:18:56] are fully abandoned to ensure such sites are not left in an abandoned state. This research should consider diesel generators, battery storage, on-site substations, any associated transmission lines, and other related features that could cause environmental harm if not addressed appropriately.

[05:19:14] Second. Second. Ms. DiProni, discussion on the motion? I'd like to have a second on that, Madam Chair. I'm sorry, I'm taking a second on that, Ms. Brooksman. Ms. DiProni. So, eventually, data centers will be obsolete the way they are today with new technologies and innovations.

[05:19:33] We don't need the large footprint that we have now in the future. I'm convinced that we will have other solutions for our data needs. So looking ahead in the next 20 or 30 years, I believe we need requirements for a decommissioning plan, standards for unsafe or abandoned data centers.

[05:19:59] Having a decommissioning plan for battery energy storage and utility-scale solar facilities is what we are doing today, but we don't have a decommissioning plan for data centers. The physical infrastructure, like power and cooling, need to be considered, not just the equipment used to store the data.

[05:20:21] Fiber, distribution lines, substations, diesel generators, HVAC systems, batteries, et cetera. So these are all the things that I think need to be looked at in a study, and also the regulatory requirements governing e-waste and hazardous materials.

[05:20:41] And I think it's worthwhile doing this now versus waiting when, you know, when we have when we have new technologies. It's worthwhile. It's worth doing it up front. Thank you. Thank you, Ms. Brixman. Thank you, Chair Randall. Mr. Crony and I have been discussing and researching this idea of decommissioning for a while now.

[05:21:03] And I appreciate, excuse me, appreciate the motion and the collaboration. It's becoming abundantly clear that we are in probably a bubble here, and we're already starting to plan on the financial side for when the revenue from data centers starts to level off and maybe even decline.

[05:21:26] And we really should be planning as well for the time when big corporations aren't going to need these buildings anymore. And these buildings aren't just like big box stores. These buildings, the walls in these buildings have all kinds of wiring and fiber inside the walls.

[05:21:45] You know, we see them go up and they just look like cement walls, but actually they're really not. They also require two substations for every single data center, two. We learned that in our last meeting when staff came back with that report. So two substations and the power lines require distribution and transmission and all of that.

[05:22:06] And also, to me, maybe the most terrifying thing is that they have, many of them, diesel generators. I think Supervisor Crony said we have 5,000 of them now in the county. In my district, I have the only Superfund site in the county because of dangerous liquid that seeped into the groundwater and poisoned constituents in broad-run farms.

[05:22:31] And if we think about all of the diesel fuel and whatever else is needed to maintain and power those generators, if we don't think about how those are going to be decommissioned, we could be looking at more Superfund sites down the road.

[05:22:50] And so I think it's really, really important that we start, you know, thinking about this and being forward looking on this to the fact that, you know, even Elon Musk has said he wants to put data centers in space. Well, you know, I learned the other day that a lot of this processing power is going to be on an Arduino or Raspberry Pi pretty soon.

[05:23:11] So sooner than we think, I believe. So I really appreciate this initiative and I will wholeheartedly support. Thank you. Ms. Umstead. Thank you, Madam Chair. I'd like to request from Supervisor Tacroni and, I guess, Supervisor Bristman to see if they would accept a friendly amendment.

[05:23:34] I seconded that, so it would be me. Should I read it? Sure. Okay. I further move that the Board of Supervisors direct staff to return to a future board meeting with the results of research into the legality and feasibility of requiring a decommissioning bond as part of the approval process for new data centers.

[05:23:58] Yeah, I support that. I think that's interesting. So, yes. So that would be friendly, a language that's added to what's already here, or would that be something completely, so you're going to add that language to the language that's here already? Yes, ma'am.

[05:24:13] So that further move, okay. Yeah, that's fine. Okay, okay. Mr. Sains. Thank you, Madam Chair. I have a friendly as well, so I further. It's only one I further. It's not a further further. All right, another friendly, and I talked to Supervisor Chaconian about this in advance as well, and she supports it, but she can speak for herself.

[05:24:35] I would suggest we add in staff should also prepare recommendations regarding how the board should proceed if such authority does not currently exist, including whether the matter be added to the county's legislative programming. That's fine. So this is a long motion.

[05:24:51] So at the end, I'm going to have that motion. Everybody read their part. Everybody read their part. So just, and then, yeah, let me have everybody read their part. So, yeah, I'm going to do that. Just expect that. I'm coming to you to read your part. Mr. Turner? Thank you, Madam Chair. Well, I have a friendly.

[05:25:10] So my friendly would replace Supervisor Crony's long paragraph with the following and then pick up with Supervisor Umstotz's friendly and Supervisor Sainz's friendly. So I think we incorporate everything in the first paragraph with the following.

[05:25:29] I move that the Board of Supervisors direct staff to include data center decommissioning rules in Phase 2 zone. So no, I can't accept that because we already asked about that. That would delay our process. Is that true?

[05:25:45] Can I ask that? Yes, it would because we're trying to wrap up our first drafts within the month. We have not looked into this in enough detail to draft language, either a policy or regulatory standpoint, within a month. Okay, that's fine, then. I'll support your motion. Thank you. So, I guess everyone's talked to Supervisor DeCrony about this, which is great.

[05:26:05] I love it when we're all on the same page. You know, I think, truthfully, we've just scratched the surface to what AI and all these things are going to look like, unfortunately. I think we have no idea what life is going to look like in 20 years, 30 years.

[05:26:21] I think we've just started. But what we do know is this. Many, many years ago, a computer would fill half of a room, and now it's in our hand. We know that even when we started this discussion in 2000 in Loudoun County or 1996, the service that AOL, the MCI, WorldCom used were much, much, much larger than the servers used now.

[05:26:47] so the discussion is not whether we might need buildings it's my it's whether the equipment in the buildings become so much smaller that the buildings don't have to be so large that's going to be the discussion and then how we decommission those buildings one reason this was important to me and what we one thing we talked about is because this might be 30 years out but if you think about it we're dealing with things today that happened 26 years ago and and i'm not absolutely not saying you know anything I mean 26 years ago they just didn't know so there's no blame but but if they

[05:27:22] could have looked around the corner 26 years from now from where they were we wouldn't be here right now what we're doing right now is looking around that corner from four years from now to say what what will these buildings be needed and if not how not how would they not be needed everything that I have been looking at and studying and starting to talk to some constituents about is soil restoration.

[05:27:46] We do not know what is going to, what is happening with the soil that these data centers are sitting on. The data centers themselves really are, they're not that hard to come down, the buildings. But there could be lots of issues with soil. So what does soil restoration look like when that happens?

[05:28:04] And so, and that may not even be just for decommissioning. That may be something we study when they start to come back and ask for redevelopments, which I imagine some of them will start to do that fairly soon. Soil restoration is going to be vitally, vitally important.

[05:28:20] The other thing that's going to be vitally important to always study is water. So all these things is a look into a future where, you know, we're not going to be on this dais. But someone is. And, you know, the lesson learned from 1996-2000 was try to look as far in the future as possible and look around the corners so the constituents far into the future and boards far into the future are not dealing with some of the things we're dealing with right now.

[05:28:52] I'm also learning a whole lot more just about the cybersecurity issues we're having. And we haven't even touched that discussion yet. So there's a lot of things to look at and a lot of corners to look around. And so that's what, that's discussion Mr. Cronia and I had had before, and it's why I'm really happy that you bought this as well.

[05:29:12] Would you like a closing? Yeah, I would just say, you know, Loudoun is a leader in the number of data centers in the U.S., and I think we can be a leader in the decommissioning space, too. So, you know, it presents an opportunity to demonstrate environmental leadership, you know, looking at outcomes such as waste diversion and material recovery can, you know, be included in some of our regulations. And I also think, looking at the fuel, I'm glad Supervisor Brissman brought that up because I am very concerned about, you know, the 6,000 diesel

[05:29:50] generators we have and the millions of gallons of diesel fuel that these generators will be using and contamination and the soils, yes, and water contamination. So I'm glad that we can be a leader and we can be forward-thinking.

[05:30:11] Thank you. Motion is made by Subvisor Crony. I second the motion. All the people who say aye. Aye. Aye. Any opposed? Oh, I'm sorry. Let's do it again. This wreath is long, long, long. Yeah, let's do it. Just that motion will... So you want me to read mine and then Kristen?

[05:30:27] Read yours and then I'll go to Ms. Umstead and then I'll go to Mr. Saints. just to put it just to put it on the record okay i move that the board of supervisors direct staff to return to a future board meeting with the results of a study into potential options for decommissioning any data centers that are fully abandoned to ensure such sites are not left in an abandoned state the research should consider diesel generators battery storage on-site substations any associated transmission lines and other related features that could cause environmental harm if not addressed appropriately i further move that the board of supervisors direct staff to return to a future board meeting with the results of research into the legality

[05:31:06] and feasibility of requiring a decommissioning bond as part of the approval process for new data centers. And staff should also prepare recommendations regarding how the board should proceed. And I further move. Oh, and I further move. I thought you said there was no further further.

[05:31:24] There's not a further further. It just says one further on your thing. And a further staff should also prepare recommendations regarding how the board should proceed if such authority does not currently exist, including whether the matter be added to the county's legislative programming. Sane's Rules of Order gets you every time. All right, everybody good? You guys got all that?

[05:31:45] All right, all in favor, please say aye. Aye. Opposed? Aye. All right, that motion will pass 702, and I think we do, not I think, we do have one more motion. Yeah, one more. Okay, I move that new requests for connection to the St. Louis wastewater service areas source system be deferred until a zoning ordinance and zoning map amendment needed to implement the general plans policies for St.

[05:32:13] Louis has been adopted by the Board of Supervisors and the Department of Planning and Zoning or other appropriate staff be directed to report to the Board of Supervisors at a future business meeting if any further Board of Supervisors action is necessary to to implement such deferral.

[05:32:29] - Second, Ms. Cicroni. - Okay, so this addresses community concerns in St. Louis over the potential for large-scale development in the village. Although the comprehensive plan update for a small area plan is complete, the zoning, a driving factor behind the community's interest in having a small area plan for the village has not yet been addressed.

[05:32:56] And we heard tonight it might not be addressed until 2028. This motion is to protect the village from overdevelopment by limiting any further expansion of the wastewater surface area until the zoning ordinance is updated to meet the policies of the small area plan.

[05:33:15] And it also helps address, we've had concerns before about overdevelopment And Chair Randall and I went out and addressed that issue with the Mojax development, but there are other threats in the village.

[05:33:34] And I just want to ensure that, you know, the service area is not expanded and there aren't any additional connections beyond what was anticipated. Thank you. Thank you. Ms. Umstead.

[05:33:50] I'm sorry. Hold on a second. Ms. Bricksman. I'm happy to support. Thank you. Ms. Umstead. Thank you, Madam Chair. I just would ask the county attorney through the chair if he believes this approach is legal. Yes, the control of a utility like water and sewer is something that the county can have authority over. In this case, the system that was created was supposed to serve a specific area. So as long as we're serving that specific area, we can control it for the rest of

[05:34:29] the uh the village all right all right thank you then i'll support um thank you first of all st louis has been gone through so much and it feels like that um that there is almost a continuous effort to take advantage of the people of st louis from people who either don't live there at all or who are fairly new to St. Louis because in St. Louis, it is less expensive to buy or to develop than it is in other parts of Loudoun County.

[05:35:09] I've said so many times that my biggest fear for St. Louis is that homes will be built and it will raise the tax values and put people out of their homes who've been there for generations. I don't know if the right word is gentrification or not.

[05:35:26] We were worried about this with what we then called the Mojax property. It was purchased by Mr. Kuhn and then set in the conservation easement. And now we have another threat to St. Louis. It is not okay. It's just not okay for, I mean, sometimes something can be legal and still not okay.

[05:35:49] Just because something is not illegal to do doesn't mean it's right to do. There's a difference between having the right to do something and it being the right thing to do. It is not right to continue to try to basically take advantage of the people of St. Louis in these ways that would displace them and displace families that have been there for years.

[05:36:15] And so I appreciate this and I am, you know, I am really getting frustrated with the, you know, continual either ignoring or taking advantage of older communities in Loudoun County that happen to also be older minority communities in Loudoun County.

[05:36:37] They've either been roundly ignored or, you know, people have come in to try to do something that will harm the citizens of that community. And every single one of those citizens in all those communities, whether it's Howardsville, Willisville, St. Louis, wherever they might be, those are my constituents, and we will take care of them.

[05:37:01] So thank you for coming with this, Ms. DiCroni, I really appreciate it. I am really frustrated with once again having to fight the same fight for the people of St. Louis. Check a closing? No, that was well said. Alright.

[05:37:19] Mr. Cronia made the motion. I second the motion. The motion on people who say aye. Aye. Any opposed? That motion will pass. 7-0-2. Supervisors, that is it. Madam Chair. Okay, who? What? You never made the packet motion. Oh, I never made the packet motion.

[05:37:35] No, ma'am. Hey, man, you ruined my life. I didn't make the packet motion. Okay, I got to go find the packet motion. All right, here we go.

[05:37:54] Give me a second. Give me a second. I just can't find, I'm on the item. I can't find the page. Do you actually always, do you actually always print everything?

[05:38:15] No, just the motions. Just the motions and my comments. wow how far did you guys bury this motion okay um yeah i'm with the board supervisors approve the current list of projects listed in tables one two and three in the department of planning and zoning work plan is identified and there's a live 22nd 2026 board supervisors business meeting action items i further move that um that staff incorporates um all the emotions that were made or that passed tonight as it pertains to the Planning and Zoning Work Plan?

[05:38:52] Second. Motion's made and seconded by Supervisor Vice Chair Turner. Discussion on that motion? Mr. -- I mean, Ms. Bricksman, do you have discussion? No. All right. All in favor say aye. Aye.

[05:39:08] Any opposed? That motion will pass 702. Okay. See you guys back in this room after the August break. Ms. Brickett, I need to see you for a second. And Ms. Umstead, may I see you for a second, please? Rogers, may I see you for a second, please?



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